

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF IDAHO

In Re:

ORDER AND INSTRUCTIONS FOR
ISSUANCE AND PROCESSING
VIOLATION NOTICES AS TO PETTY
OFFENSES/ CVB BOND FORFEITURE
SCHEDULE

**GENERAL ORDER NO. 405
AMENDING GENERAL
ORDER NOS. 16, 148, 224, 278 and 296**

This matter having come before the Court on motion of the United States of America to enter a General Order that will amend previously issued General Orders 16, 148, 224, 278, and 296, all of which established the fine and bail forfeiture schedules of various federal agencies and are collectively known as the Central Violations Bureau (CVB) Bond Forfeiture Schedule.

IT IS HEREBY ORDERED that General Order Nos. 16, 148, 224, 278, and 296 regarding the fine and bail forfeiture schedules of various federal agencies, the CVB Bond Forfeiture Schedule, are hereby amended and superseded by the CVB Bond Forfeiture Schedule, revised August 2025, which is attached hereto.

This Order supersedes all fine and bail forfeiture schedules heretofore adopted.

DATED this 22nd day of October 2025.



DAVID C. NYE, CHIEF
UNITED STATES DISTRICT JUDGE



RAYMOND E. PATRICCO, CHIEF
UNITED STATES MAGISTRATE JUDGE

JUSTIN D. WHATCOTT, IDAHO STATE BAR NO. 6444
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UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF IDAHO

In Re:

ORDER AND INSTRUCTIONS FOR
ISSUANCE AND PROCESSING
VIOLATION NOTICES AS TO PETTY
OFFENSES/CVB BOND FOREITURE
SCHEDULE

**MOTION FOR GENERAL
ORDER NO. 352 AMENDING
AND SUPERSEDING GENERAL
ORDER NOS. 16, 148, 224, 278, and 296**

The United States of America, by and through Justin D. Whatcott, Acting United States Attorney, and the undersigned Assistant United States Attorney for the District of Idaho, hereby moves this Court to enter the instant General Order that will amend General Order Nos. 16, 148, 224, 278, and 296, all of which established the fine and bail forfeiture schedules of various federal agencies and are collectively known as the Central Violations Bureau (CVB) Bond Forfeiture Schedule. The amended CVB Bond Forfeiture Schedule, revised August 2025, is attached hereto. The proposed Order would supersede all fine and bail forfeiture schedules heretofore adopted.

DATED THIS 21st day of August, 2025,

JUSTIN D. WHATCOTT
ACTING UNITED STATES ATTORNEY
BY:

/s/David J. Morse
DAVID J. MORSE
Assistant United States Attorney

August 2025 CVB

Bond Forfeiture

Schedule

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I
UNITED STATES AIR FORCE MOUNTAIN HOME AIR FORCE BASE
18 U.S.C. 13 and Idaho Code, Title 49

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
18-8001	Driving Without Privileges	Class A Misdemeanor	<u>First offense:</u> \$500.00 (resident) \$2000.00 (nonresident) <u>Second offense:</u> \$1000.00 (resident) \$3000.00 (nonresident) <u>Third offense:</u> \$2000.00 (resident) \$4000.00 (nonresident) MA
49-213	Handicapped Parking Violation	Infraction	\$50.00/MA
49-218	Operating Motor Vehicle as Emergency Vehicle	Class C Misdemeanor	\$206.00
49-227	Driving Vehicle Without Owner's Consent	Class B Misdemeanor	\$280.00/MA
49-229	Injuring or Destroying Vehicle	Class B Misdemeanor	\$280.00/MA
49-230	Tampering with Vehicle	Class B Misdemeanor	\$276.00/MA
49-301	Fail to Purchase Driver's License/Invalid Driver's License/No motorcycle endorsement	Class B Misdemeanor	\$226.00
49-316	Fail to Carry Driver's License (Dismissed w/ proof)	Infraction	\$171.00
49-317	Violating a Restricted License	Infraction	\$50.00
49-329	Operating Vehicle Under Out-of-State License While Suspended	Infraction	\$50.00
49-331(1)	Displaying Mutilated or Fictitious License	Class B Misdemeanor	\$206.00
49-331(2)	Lending or Permitting Use of License by Another	Class B Misdemeanor	\$226.00

49-331(3)	Displaying a License of Another as One's Own	Class B Misdemeanor	\$276.00/MA
49-333	Permitting Unauthorized Person to Drive	Infraction	\$50.00
49-427	Fail to Carry Registration in Vehicle (Dismissed w/Proof)	Infraction	\$50.00
49-428	Fail to Properly Display License Plates	Infraction	\$50.00
49-456(1)	Operate Motor Vehicle Not Registered	Infraction	\$50.00
49-456(2)	Fictitious Display of Plates	Infraction	\$50.00
49-456(3)	Lending or Permitting Another to Use Registration Or License Plates	Infraction	\$50.00
49-602	Leave Motor Vehicle Unattended	Infraction	\$50.00
49-603	Unsafe Start of Parked Vehicle	Infraction	\$50.00
49-604	Improper Backing	Infraction	\$50.00
49-605	Driving on Sidewalk	Infraction	\$50.00
49-612	Obstructing Driver's View	Infraction	\$50.00
49-613	Littering on Highway	Infraction	\$50.00
49-625	Fail to Yield to Emergency Vehicle	Infraction	\$50.00
49-626	Following Fire Apparatus	Infraction	\$50.00
49-627	Crossing Fire Hose	Infraction	\$50.00
49-630	Driving on Wrong Side of Road	Infraction	\$50.00
49-632	Improper Passing	Infraction	\$50.00
49-635	Driving Left of Center	Infraction	\$50.00
49-636	Driving Wrong Way on One Way Road	Infraction	\$50.00
49-637	Driving on Highways Laned for Traffic	Infraction	\$50.00
49-638	Following Too Close	Infraction	\$50.00
49-640	Fail to Yield at Intersection	Infraction	\$50.00
49-641	Fail to Yield Turning Left	Infraction	\$50.00
49-642	Fail to Yield Entering Roadway	Infraction	\$50.00
49-644	Turning Violations	Infraction	\$50.00
49-645	Improper U-Turn	Infraction	\$50.00
49-654	Speeding - Maximum Speed Limitations	Infraction	\$50.00
49-655	Speed - Driving Too Slow	Infraction	\$50.00

49-657	Speeding in a Construction Zone	Infraction	\$50.00
49-660	Stop, Stand, Park -- Prohibited in Specific Places	Infraction	\$50.00
49-665	Improper Operation of Motorcycle	Infraction	\$50.00
49-666	No Helmet on Motorcycle - Under 18	Infraction	\$50.00
49-672	No Child Seat	Infraction	\$50.00
49-673	No Safety Restraint	Infraction	\$10.00
49-701	Pedestrian - Fail to Obey Traffic Control Device	Infraction	\$50.00
49-702	Fail to Yield to Pedestrian	Infraction	\$50.00
49-801	Fail to Obey Traffic Control Device	Infraction	\$50.00
49-804	Fail to Obey Flashing Signal	Infraction	\$50.00
49-807	Stop Sign - Yield Sign Violations	Infraction	\$50.00
49-808	Signal -- Fail to Signal Violations	Infraction	\$50.00
49-903	Fail to Use Head Lamps When Required	Infraction	\$50.00
49-906	Tail Lamps B Fail to Use	Infraction	\$50.00
49-914	Lamps Required on Parked Vehicles	Infraction	\$50.00
49-923	Fail to Dim Lights	Infraction	\$50.00
49-933	Equipment - Brakes	Infraction	\$50.00
49-937	Equipment - Muffler Violations	Infraction	\$50.00
49-940	Equipment - Mirrors	Infraction	\$50.00
49-943	Obstruction of Windshield	Infraction	\$50.00
49-944	Window Tinting Film Violations	Infraction	\$50.00
49-1229	Fail to Maintain Liability Insurance	Infraction/Class B Misdemeanor for 2+ offenses	\$75.00/ \$280.00/MA
49-1232	Fail to Provide Proof of Liability Insurance	Infraction/Class B Misdemeanor for 2+ offenses	\$75.00/ \$280.00/MA
49-1301	Fail to Remain at Accident Scene	Class B Misdemeanor	\$300.00/MA
49-1303	Fail to Notify Upon Striking Vehicle	Class B Misdemeanor	\$300.00/MA
49-1304	Fail to Give Notice to Owner of Property Adjacent to Highways at Accident	Class B Misdemeanor	\$264.00

49-1305	Fail to Give Immediate Notice of Accident	Class B Misdemeanor	\$300.00/MA
49-1308	Filing False Accident Report	Class B Misdemeanor	\$250.00
49-1401(1)	Reckless Driving	Class B Misdemeanor	\$300.00/MA
49-1401(3)	Inattentive Driving	Class B Misdemeanor	\$280.00/MA
49-1403	Knowingly Permit Operation of Vehicle Contrary to Law	Class B Misdemeanor	\$181.00
49-1404	Fleeing or Attempting to Elude a Police Officer	Class B Misdemeanor	\$300.00/MA
49-1419	Fail to Obey Officer	Class B Misdemeanor	\$181.00
49-1422	Passing Stopped School Bus	Misdemeanor	\$280.00/MA
49-1424	Racing on Public Highway	Class B Misdemeanor	\$276.00/MA
49-1428	Operate Motor Vehicle Without Insurance	Infraction/ Class B Misdemeanor for 2+ offenses	\$46.50/\$75.00
49-1429	Altered Certificate Liability Insurance	Class B Misdemeanor	\$500.00/MA
49-1430	Forged Liability Insurance Certificate	Class A Misdemeanor	\$500.00/MA

Misdemeanor = Statute does not specify class or maximum term of imprisonment

If the offense is an **INFRACTION** under Idaho Statutes, then cite 32 C.F.R.

§ 210 as the incorporating statute. If the offense is a **CRIME** under Idaho

Statutes, then cite 18 U.S.C. § 13 as the incorporating statute.

II
NATIONAL PARK SERVICE
TITLE 36, CODE OF FEDERAL
REGULATIONS
Restricted or Prohibited Acts

PART 1. GENERAL PROVISIONS

Closure of Public Use Limits

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
1.5(f)	Violating a closure, designation, use or activity restriction or condition, schedule or visiting hours, or public use limit is prohibited. When a permit is used to implement a public use limit, violation of the terms and conditions of a permit is prohibited and may result in the suspension or revocation of the permit.	B Misdemeanor	\$50.00

Permits

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
1.6(g)(1)	No permit.	B Misdemeanor	\$100.00/MA
1.6(g)(2)	Violating terms and conditions of permit	B Misdemeanor	\$100.00/MA

PART 2. PRESERVATION OF NATURAL, CULTURAL AND ARCHEOLOGICAL RESOURCES

Preservation of Natural, Cultural and Archeological Resources

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.1(a)(1)(i)	Possessing, destroying, injuring, defacing, removing, digging, or disturbing from its natural state living or dead wildlife or fish	B Misdemeanor	\$500.00/MA
2.1(a)(1)(ii)	Possessing, destroying, injuring, defacing, removing, digging, or disturbing from its natural state plants or parts of plants	B Misdemeanor	\$500.00/MA

2.1(a)(1)(iii)	Possessing, destroying, injuring, defacing, removing, digging, or disturbing from its natural state non-fossilized and fossilized specimens, etc.	B Misdemeanor	\$500.00/MA
2.1(a)(1)(iv)	Possessing, destroying, injuring, defacing, removing, digging, or disturbing from its natural state mineral or cave resources	B Misdemeanor	\$250.00/MA
2.1(a)(2)	Introducing wildlife, fish or plants into Park area	B Misdemeanor	\$250.00/MA
2.1(a)(3)	Rock throwing, etc., in caves, down hills, into thermal features, etc.	B Misdemeanor	\$250.00/MA
2.1(a)(4)	Using or possessing wood from within the Park	B Misdemeanor	\$50.00
2.1(a)(5)	Walking or climbing, etc., on an archeological or cultural resource, monument or statue	B Misdemeanor	\$250.00/MA
2.1(a)(6)	Possessing, destroying, injuring, defacing, removing, digging, or disturbing a structure or its furnishings or fixtures or other cultural or archeological resource	B Misdemeanor	\$500.00/MA Archeological \$250.00/MA all other
2.1(a)(7)	Possession or use of a mineral or metal detector, etc.	B Misdemeanor	\$100.00/MA
2.1(b)	Leaving the trail, short-cutting in restricted area	B Misdemeanor	\$50.00
2.1(c)(3)(i)	Gathering or possessing undesignated natural products	B Misdemeanor	\$100.00
2.1(c)(3)(ii)	Violating size or quantity limits of natural products	B Misdemeanor	\$100.00
2.1(c)(3)(iii)	Removal of natural products	B Misdemeanor	\$175.00/MA
2.1(c)(3)(iv)	Gathering natural products outside of designated area	B Misdemeanor	\$100.00
2.1(c)(3)(v)	Sale or commercial use of natural products	B Misdemeanor	\$500.00/MA

Wildlife Protection

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.2(a)(1)	Taking wildlife except as authorized	B Misdemeanor	\$500.00/MA
2.2(a)(2)	Feeding, touching, teasing, frightening or intentional disturbing wildlife.	B Misdemeanor	\$150.00/MA
2.2(a)(3)	Possessing unlawfully taken wildlife	B Misdemeanor	\$500.00/MA

2.2(b)(4)	Hunting not in accordance with federal and state law	B Misdemeanor	\$50.00/MA
2.2(d)	Violating conditions or procedures for transporting lawfully taken wildlife through Park area	B Misdemeanor	\$100.00
2.2(e)	Viewing wildlife with artificial light in closed area	B Misdemeanor	\$250.00

Weapons, Traps and Nets

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.4(a)	Possessing, using, discharging or carrying a weapon, trap, or net	B Misdemeanor	\$250.00/MA
2.4(b)	Carrying or possessing loaded weapon in motor vehicle, vessel or other mode of transportation that is under way or being used as a shooting platform	B Misdemeanor	\$300.00/MA
2.4(c)	Endangering persons or property by use of weapon, trap or net	B Misdemeanor	\$300.00/MA
2.4(d)	Violating permit to carry or possess weapon, trap, or net	B Misdemeanor	\$150.00
2.4(f)	Carrying or possessing weapon, trap or net must be in compliance with Federal and State regulations	B Misdemeanor	\$250.00/MA

Research Specimens

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.5(a)	Taking plants, fish, wildlife, rocks or minerals not in accordance with regulations or specimen collection permit	B Misdemeanor	\$250.00/MA big game \$100.00/MA small game
2.5(h)	Violating the terms and conditions of permit	B Misdemeanor	\$100.00

Camping and Food Storage

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.10(b)(1)	Digging or leveling ground at campsite	B Misdemeanor	\$75.00

2.10(b)(2)	Leaving equipment, alterations or refuse after departing campsite	B Misdemeanor	\$75.00
2.10(b)(3)	Camping within 25 feet of hydrant, main road, or within 100 feet of body of water, except as designated	B Misdemeanor	\$75.00
2.10(b)(4)	Creating unreasonable noise between hours of 10:00pm to 6:00am	B Misdemeanor	\$75.00
2.10(b)(5)	Installation of permanent camping facilities	B Misdemeanor	\$250.00/MA
2.10(b)(6)	Display of wildlife carcasses	B Misdemeanor	\$75.00
2.10(b)(7)	Connection to utility system	B Misdemeanor	\$75.00
2.10(b)(8)	Failure to obtain permit where required	B Misdemeanor	\$75.00
2.10(b)(9)	Violating Superintendent=s established conditions	B Misdemeanor	\$100.00
2.10(b)(10)	Camping outside of designated sites or areas	B Misdemeanor	\$75.00
2.10(c)	Violating terms and conditions of permit	B Misdemeanor	\$50.00
2.10(d)	Failure to properly store food.	B Misdemeanor	\$50.00

Auto Disturbances

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.12(a)(1)(i)	Operating motorized equipment or audio device in manner exceeding noise level of 60 decibels	B Misdemeanor	\$75.00
2.12(a)(1)(ii)	Operating motorized equipment or audio device in manner exceeding reasonable noise	B Misdemeanor	\$75.00
2.12(a)(2)	Operating power saw without permit in developed areas	B Misdemeanor	\$50.00
2.12(a)(3)	Operating motor or engine without permit in undeveloped areas	B Misdemeanor	\$100.00
2.12(a)(4)	Operating public address system without permit	B Misdemeanor	\$75.00
2.12(b)	Violating terms and conditions of permit	B Misdemeanor	\$50.00

Fires

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.13(a)(1)	Fire in undesignated area	B Misdemeanor	\$75.00

2.13(a)(2)	Using stove or lantern in violation of established restrictions	B Misdemeanor	\$50.00
2.13(a)(3)	Tending or using fire, stove or lantern in manner that threatens, causes damage to, or results in burning of property or park resources or which creates public safety hazard	B Misdemeanor	\$75.00
2.13(a)(4)	Unattended fire	B Misdemeanor	\$175.00
2.13(a)(5)	Lighted or smoldering material discarded in manner that threatens, causes damage to, or resulting in burning of property or Park resources, or created public safety hazard	B Misdemeanor	\$250.00/MA

Sanitation and Refuse

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.14(a)(1)	Disposing of refuse improperly	B Misdemeanor	\$25.00
2.14(a)(2)	Use of Government receptacle for unauthorized refuse	B Misdemeanor	\$75.00
2.14(a)(3)	Depositing refuse in plumbing or toilets	B Misdemeanor	\$100.00
2.14(a)(4)	Draining trailer or vehicle in unauthorized area	B Misdemeanor	\$150.00 grey water \$250.00/MA sewage
2.14(a)(5)	Bathing or washing materials at public water outlets	B Misdemeanor	\$75.00
2.14(a)(6)	Polluting or contaminating park area waters	B Misdemeanor	\$250.00/MA
2.14(a)(7)	Disposing of fish remains within 200 feet of docks, beaches, or other developed areas	B Misdemeanor	\$50.00
2.14(a)(8)	Improper disposal of human body waste in developed area	B Misdemeanor	\$150.00/MA
2.14(a)(9)	Disposal of human body waste within 100 feet of water, campsite, or within sight of trail in undeveloped area	B Misdemeanor	\$150.00/MA
2.14(b)	Violating disposal, containerization, or carry-out conditions	B Misdemeanor	\$100.00

Pets

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.15(a)(1)	Possession of pet in closed area	B Misdemeanor	\$50.00/MA
2.15(a)(2)	Failure to crate, cage, or restrain pet on leash not to exceed six (6) feet (failure to physically confine pet at all times)	B Misdemeanor	\$50.00
2.15(a)(3)	Unattended pet left tied to an object	B Misdemeanor	\$50.00
2.15(a)(4)	Allowing pet to make unreasonable noise	B Misdemeanor	\$75.00
2.15(a)(5)	Failure to dispose of pet excrement properly	B Misdemeanor	\$50.00
2.15(b)	Pets used in hunting activities must be in accordance with Federal and State laws	B Misdemeanor	\$150.00
2.15(e)	Resident violating conditions established by Superintendent	B Misdemeanor	\$50.00

Horses and Pack Animals

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.16(a)	Undesignated animals being used for pack animals	B Misdemeanor	\$50.00
2.16(b)	Horses or pack animals in undesignated areas	B Misdemeanor	\$100.00
2.16(c)	Use of horses or pack animals on Park roads	B Misdemeanor	\$50.00
2.16(d)	"Free-Trailing" or loose-herding of horses or pack animals in undesignated areas	B Misdemeanor	\$150.00
2.16(e)	Failure to slow horse or pack animal to walk when passing pedestrians or bicycles	B Misdemeanor	\$100.00
2.16(f)	Trail obstruction, or unreasonable noise while horses or pack animals are passing	B Misdemeanor	\$150.00
2.16(g)	Violating conditions established by Superintendent	B Misdemeanor	\$50.00

Aircraft and Air Delivery

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.17(a)(1)	Operating aircraft in undesignated areas	B Misdemeanor	\$200.00
2.17(a)(2)	Operating within 500 feet of beaches, docks, piers, ramps in designated areas	B Misdemeanor	\$200.00

2.17(a)(3)	Delivering or retrieving a person or object by airborne means, except in an emergency	B Misdemeanor	\$300.00
2.17(c)(2)	Removal of down aircraft	B Misdemeanor	\$500.00/MA
2.17(d)	Use of aircraft shall be in accordance with FAA regulations	B Misdemeanor	\$150.00
2.17(e)	Hovercraft is prohibited	B Misdemeanor	\$150.00
2.17(f)	Violating terms and conditions of permit	B Misdemeanor	\$50.00

Snowmobiles

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.18(b)	State laws shall govern equipment standards and operations	B Misdemeanor	\$75.00
2.18(c)	Use of snowmobile prohibited, except in designated area	B Misdemeanor	\$200.00/MA
2.18(d)(1)	Operating a snowmobile that makes excessive noise	B Misdemeanor	\$50.00
2.18(d)(2)	Operating without a lighted white headlamp and red taillight, from 1/2 hour after sunset to 1/2 hour before sunrise during designated hours	B Misdemeanor	\$75.00
2.18(d)(3)	Operating snowmobile with brakes not in good working order	B Misdemeanor	\$75.00
2.18(d)(4)	Racing or operating in excess of 45mph or posted limit	B Misdemeanor	\$75.00
2.18(e)(1)	Operation of snowmobile by person under 16 unless in line of sight by person 21 years old, except where State law prescribes	B Misdemeanor	\$75.00
2.18(e)(2)	Operating snowmobile by person under 12 unless accompanied on machine by person 21 years old, except where State law prescribes	B Misdemeanor	\$75.00
2.18(e)(3)	Supervising more than 1 person under 16 years old, except where State law prescribes	B Misdemeanor	\$75.00

Winter Activities

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.19(a)	Skiing or sledding on road or unposted area	B Misdemeanor	\$50.00
2.19(b)	Towing skiers or sledders in unauthorized area	B Misdemeanor	\$50.00
2.19(c)	Failure to abide by designation or restrictions	B Misdemeanor	\$50.00

Skating, Skateboards, and Similar Devices

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.20	Use of roller skates, skateboards, roller skis, coasting vehicles is prohibited except in designated areas	B Misdemeanor	\$50.00

Smoking

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.21(a)	Smoking in undesignated areas	B Misdemeanor	\$150.00
2.21(b)	Smoking in caves	B Misdemeanor	\$150.00

Property

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.22(a)(1)	Abandoning property	B Misdemeanor	\$100.00
2.22(a)(2)	Leaving property unattended for longer than 24 hours	B Misdemeanor	\$75.00
2.22(a)(3)	Failure to turn in found property to Superintendent	B Misdemeanor	\$75.00

Recreation Fees

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.23(b)	Failure to pay required fees	B Misdemeanor	\$50.00

Misappropriation of Property and Services

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.30(a)(1)	Unlawful possession of another's property	B Misdemeanor	\$250.00/MA
2.30(a)(2)	Obtaining property or services without making payment	B Misdemeanor	\$250.00/MA
2.30(a)(3)	Obtaining property or services by means of deception or using fraudulently obtained credit cards or non-	B Misdemeanor	\$250.00/MA

	negotiable paper		
2.30(a)(4)	Shoplifting or paying less by deception	B Misdemeanor	\$250.00/MA
2.30(a)(5)	Acquiring or possessing stolen property	B Misdemeanor	\$250.00/MA

Trespassing, Tampering and Vandalism

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.31(a)(1)	Trespassing on property not open to the public	B Misdemeanor	\$100.00
2.31(a)(2)	Unlawful tampering with personal property	B Misdemeanor	\$100.00
2.31(a)(3)	Destroying, injuring, defacing or damaging property	B Misdemeanor	\$250.00/MA

Interfering with Agency Functions

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.32(a)(1)	Any interference with Government employee engaged in an official duty or on account of the performance of an official duty	B Misdemeanor	\$500.00/MA
2.32(a)(2)	Failure to obey a lawful order	B Misdemeanor	\$150.00/MA
2.32(a)(3)(i)	Giving false information to authorized person investigating accident or violation of law	B Misdemeanor	\$150.00/MA
2.32(a)(3)(ii)	Giving false information on application for permit	B Misdemeanor	\$150.00/MA
2.32(a)(4)	False report to authorized person	B Misdemeanor	\$150.00/MA

Reporting of Injury or Damage

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.33(b)	Failure to report incident resulting in injury to person(s) or damage to property in excess of \$300.00	B Misdemeanor	\$150.00/MA

Disorderly Conduct

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.34(a)(1)	Fighting, threatening, or violent behavior	B Misdemeanor	\$200.00/MA
2.34(a)(2)	Offensive or abusive utterance, gesture, or display, etc.	B Misdemeanor	\$150.00/MA
2.34(a)(3)	Unreasonable noise, etc.	B Misdemeanor	\$150.00/MA

2.34(a)(4)	Creation of hazardous or offensive condition	B Misdemeanor	\$200.00/MA
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Alcoholic Beverages and Controlled Substances

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.35(a)(2)(i)	Sale or gift of alcohol to person below legal minimum age	B Misdemeanor	\$150.00
2.35(a)(2)(ii)	Possession of alcohol by person below legal minimum age	B Misdemeanor	\$100.00
2.35(a)(3)	Consuming alcohol in area closed to drinking	B Misdemeanor	\$100.00
2.35(b)(1)	Delivery of controlled substance	B Misdemeanor	\$500.00/MA
2.35(b)(2)	Possession of controlled substance	B Misdemeanor	\$250.00/MA
2.35(c)	Presence in Park while under influence of alcohol or controlled substance to a degree or that may endanger persons or property	B Misdemeanor	\$100.00/MA

Gambling

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.36(a)	Gambling is prohibited	B Misdemeanor	\$100.00

Non-Commercial Soliciting

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.37	Soliciting fights, money, goods or services	B Misdemeanor	\$200.00

Explosives

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.38(a)	Unauthorized use or possession of explosives	B Misdemeanor	\$250.00
2.38(b)	Unauthorized use or possession of fireworks	B Misdemeanor	\$200.00 use \$100.00 possession
2.38(c)	Violating terms and conditions of permit	B Misdemeanor	\$100.00

Special Events

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.50(e)	Violating terms and conditions of permit	B Misdemeanor	\$100.00/MA

Public Assemblies, Meetings

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.51(a)	Public spectator attraction without permit	B Misdemeanor	\$250.00/MA
2.51(h)	Persons engages in activities covered under this section are prohibited from obstructing, impeding, or harassing Park visitors	B Misdemeanor	\$100.00/MA

Sale or Distribution of Printed Matter

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.52(a)	Sale or distribution of printed matter without permit	B Misdemeanor	\$250.00
2.52(h)	Persons engaged in activities covered under this section are prohibited from obstructing, impeding or harassing Park visitors	B Misdemeanor	\$100.00/MA

Livestock Use and Agriculture

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.60(a)	Illegal or unauthorized herding, pasturing, or grazing of livestock.	B Misdemeanor	\$200.00/MA+ \$50.00 per animal per day
2.60(b)	Violating terms and conditions of permit	B Misdemeanor	\$200.00/MA

Residing on Federal Lands

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.61(a)	Unauthorized residence on Federal Lands	B Misdemeanor	\$250.00/MA
2.61(b)	Violation of terms and conditions of permit	B Misdemeanor	\$250.00/MA

Memorialization

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2.62(a)	Unauthorized installation of monument, memorial, etc.	B Misdemeanor	\$150.00
2.62(b)	Scattering human ashes without permit	B Misdemeanor	\$75.00
2.62(c)	Violating area designations and established conditions	B Misdemeanor	\$75.00
2.62(d)	Violating terms and conditions of permit	B Misdemeanor	\$75.00

PART 4. VEHICLES AND TRAFFIC SAFETY**State Applicable Law**

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
4.2	Unless specifically covered herein, State Laws and regulations are applicable	B Misdemeanor	\$75.00

Report of Motor Vehicle Accident

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
4.4(b)	Failure to notify Superintendent prior to towing or moving vehicle involved in motor vehicle accident	B Misdemeanor	\$250.00/MA
4.4(c)	Failure to report motor vehicle accident as prescribed in 4.4(a)	B Misdemeanor	\$150.00/MA

Travel on Park Roads and Designated Routes

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
4.10(a)	Operating motor vehicle on undesignated roads and parking areas	B Misdemeanor	\$200.00/MA
4.10(c)(1)	Operating motor vehicle not equipped with pneumatic tires on designated roads or parking areas	B Misdemeanor	\$75.00
4.10(c)(2)	Operating motor vehicle in manner that causes unreasonable damage to road surface	B Misdemeanor	\$250.00/MA
4.10(c)(3)	Operating motor vehicle in area designated for off road use after dark	B Misdemeanor	\$75.00

Load, Weight, and Size Limits

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
4.11(b)(1)	Operating vehicle that exceeds load, weight, or size limit designated by Superintendent	B Misdemeanor	\$250.00/MA
4.11(b)(2)	Failure to obtain permit when required	B Misdemeanor	\$250.00
4.11(b)(3)	Violating terms or conditions of permit	B Misdemeanor	\$250.00
4.11(b)(4)	Operating a motor vehicle with an auxiliary detachable side mirror that extends more than 10 inches beyond side of fender line, except when towing second vehicle	B Misdemeanor	\$75.00

Traffic Control Devices

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
4.12	Failure to comply with directions of traffic control device	B Misdemeanor	\$75.00

Obstructing Traffic

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
4.13(a)	Stopping or parking a vehicle on Park road except as authorized or under conditions beyond operator=s control	B Misdemeanor	\$75.00
4.13(b)	Operating motor vehicle so slowly as to interfere with the normal flow of traffic	B Misdemeanor	\$75.00

Open Container of Alcoholic Beverage

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
4.14	Carrying or storing bottle, can, or other receptacle containing alcoholic beverage that is open, has been opened, whose seal has been broken, or contents of which have been partially removed, within a motor vehicle in glove compartment is prohibited. The operator of a motor vehicle is responsible for complying with this regulation.	B Misdemeanor	\$50.00

Safety Restraint

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
4.15(a)	No safety belt.	B Misdemeanor	\$50.00

Right-Of-Way

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
4.20	Failure to yield right-of-way to pedestrians, saddle horses, pack animals and vehicles drawn by animals	B Misdemeanor	\$100.00

Speed Limits

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
4.21(c)	Operating vehicle at a speed in excess of speed limit	B Misdemeanor	\$50.00 1-15 mph Over \$75.00 16+mph Over

Unsafe Operation

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
4.22(b)(1)	Operating motor vehicle without due care	B Misdemeanor	\$150.00/MA careless \$200.00/M A reckless
4.22(b)(2)	Squealing tires	B Misdemeanor	\$75.00
4.22(b)(3)	Failure to maintain control of motor vehicle	B Misdemeanor	\$150.00
4.22(b)(4)(i)	Operating vehicle while allowing person to ride on or within a towed trailer or other conveyance not designated to carry passengers	B Misdemeanor	\$150.00
4.22(b)(4)(ii)	Operating motor vehicle while allowing person to ride on exterior portion of motor vehicle not designated or intended for use of passengers	B Misdemeanor	\$150.00

Operation Under the Influence of Alcohol or Drugs

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
4.23(a)(1)	Operating or being in actual physical control of motor vehicle while under the influence of alcohol, a drug, or any combination thereof	B Misdemeanor	\$300.00/MA
4.23(c)(2)	Refusal to take breath or blood test	B Misdemeanor	\$300.00/MA

Bicycles

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
4.30(a)	Use of bicycle in undesignated area	B Misdemeanor	\$50.00
4.30(c)	Failure to obey applicable traffic regulations of Part 4, except 4.4, 4.10, 4.11, and 4.14	B Misdemeanor	\$50.00
4.30(d)(1)	Possessing bicycle in wilderness area established by Federal statute	B Misdemeanor	\$50.00
4.30(d)(2)	Operating bicycle during periods of low visibility or between sunset and sunrise without lights or reflectors	B Misdemeanor	\$50.00
4.30(d)(3)	Operating bicycles abreast	B Misdemeanor	\$50.00
4.30(d)(4)	Operating bicycle while consuming alcohol beverage or carrying open contained or alcoholic beverage in hand	B Misdemeanor	\$50.00

Hitchhiking

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
4.31	Hitchhiking or soliciting transportation	B Misdemeanor	\$50.00

PART 5. COMMERCIAL AND PRIVATE OPERATIONS**Advertising**

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
5.1	Advertising without permit	B Misdemeanor	\$250.00

Alcoholic Beverages; Sale of Intoxicants

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
5.2(a)	Unlawful sale of alcoholic beverage	B Misdemeanor	\$150.00

Business Operation

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
5.3	Engaging in business without permit	B Misdemeanor	\$200.00

Commercial Passenger-Carrying Motor Vehicles

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
5.4(a)	Commercial transportation (passenger-carrying motor vehicle) of passengers without permit	B Misdemeanor	\$250.00
5.4(b)	Oversized passenger-carrying vehicles	B Misdemeanor	\$250.00

Commercial Photography

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
5.5(a)	Commercial television or motion pictures without permit	B Misdemeanor	\$500.00/MA
5.5(b)	Commercial still photography without permit	B Misdemeanor	\$500.00/MA

Commercial Vehicles

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
5.6(b)	Prohibited commercial use of Park road	B Misdemeanor	\$250.00/MA

Construction of Building or Other Facilities

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
5.7	Construction of buildings or other facilities in Park without permit	B Misdemeanor	\$250.00/MA

Nuisances

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
5.13	Creating and maintaining a nuisance on federally owned land under exclusive legislative jurisdiction of the United States	B Misdemeanor	\$250.00/MA

Prospecting, Mining, and Mineral Leasing

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
5.14	Unlawful prospecting, mining, and mineral leasing	B Misdemeanor	\$250.00/MA

III
FOREST SERVICE
TITLE 36, CODE OF FEDERAL REGULATIONS
RESTRICTED OR PROHIBITED ACTS

PART 261 - SUBPART A - GENERAL PROHIBITIONS

Interfering With a Forest Officer, Volunteer, or Human Resource Program Enrollee or Giving False Report to a Forest Officer

The following are prohibited:

Section	Offense	Classification	Bail
261.3(a)	Threatening, resisting, intimidating, or interfering with any forest officer engaged in or on account of the performance of his official duties in the protection, improvement, or administration of the National Forest System is prohibited	B Misdemeanor	\$500.00/MA
261.3(b)	Giving any false, fictitious or fraudulent report or other information to any Forest Officer engaged in or on account of the performance of his official duties knowing that such report or other information contains false, fictitious or fraudulent statement or entry	B Misdemeanor	\$200.00/MA
261.3(c)	Threatening, intimidating, or intentionally interfering with any Forest officer, volunteer, or human resource program enrollee while engaged in, or on account of, the performance of duties for the protection, improvement, or administration of the National Forest System or other duties assigned by the Forest Service	B Misdemeanor	\$500.00/MA

Disorderly Conduct

The following are prohibited:

Section	Offense	Classification	Bail
261.4(a)	Engaging in fighting or any threatening or other violent behavior.	B Misdemeanor	\$200.00

261.4(b)	Making an utterance or performing an act that is obscene or threatening or that is made or performed in a manner that is likely to inflict injury or incite an immediate breach of peace.	B Misdemeanor	\$200.00
261.4(c)	Making noise that is unreasonable considering the nature and purpose of the conduct, location, and time.	B Misdemeanor	\$200.00

Fire

The following are prohibited:

Section	Offense	Classification	Bail
261.5(a)	Carelessly or negligently throwing or placing any ignited substance or other substance that may cause a fire	B Misdemeanor	\$200.00/MA
261.5(b)	Firing any tracer bullet or incendiary ammunition	B Misdemeanor	\$250.00/MA
261.5(c)	Causing timber, trees, slash, brush or grass to burn except as authorized by permit	B Misdemeanor	\$250.00/MA
261.5(d)	Leaving a fire without completely extinguishing it	B Misdemeanor	\$200/MA
261.5(e)	Allowing a fire to escape from control	B Misdemeanor	\$200.00/MA
261.5(f)	Building, attending, maintaining, or using a campfire without removing all flammable material from around the campfire adequate to prevent its escape	B Misdemeanor	\$200.00
261.5(g)	Negligently failing to maintain control of a prescribed fire on Non-National Forest System lands that damages the National Forest System	B Misdemeanor	\$250.00/MA
261.5(h)	Possessing or using an exploding target or any kind of firework or other pyrotechnic device.		Poss: \$300.00 Use: \$300.00
261.5(i)	Violating any State law concerning burning or fires or any State law that is for the purpose of preventing or restricting the spread of fire.		\$200.00
261.5(j)	Operating or using any internal or external combustion engine without a spark arresting		\$100.00

	device that is properly installed, maintained, and in effective working order in accordance with USDA Forest Service Standard 5100-1.		
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Timber and Other Forest Products

The Following are prohibited

Section	Offense	Classification	Bail
261.6(a)	Cutting or otherwise damaging any timber, tree, or other forest product, except as authorized by a special-use authorization, timber sale contract, or Federal law or regulation	B Misdemeanor	\$175.00/MA + \$50.00/Tree
261.6(b)	Cutting any standing tree, under permit or timber sale contract, before a Forest Officer has marked it or has otherwise designated it for cutting	B Misdemeanor	\$250.00/MA + \$75.00/Tree
261.6(c)	Removing any timber or other forest product cut under permit or timber sale contract, except to a place designated for scaling, or removing it from that place before it is scaled, measured, counted, or otherwise accounted for by a forest officer	B Misdemeanor	\$500.00/MA
261.6(d)	Stamping, marking with paint, or otherwise identifying any tree or other forest product in a manner similar to that employed by forest officers to mark or designate a tree or any other forest product for cutting or removal	B Misdemeanor	\$500.00/MA
261.6(e)	Loading, removing or hauling timber or other forest product acquired under any permit or timber sale contract unless such product is identified as required in such permit or contract	B Misdemeanor	\$250.00/MA commercial \$150.00/MA non-commercial
261.6(f)	Selling or exchanging any timber or other forest product obtained under free use pursuant to "223.5 through 223.11	B Misdemeanor	\$250.00

261.6(g)	Violating any timber export or substitution restriction in "223.160 through 223.164	B Misdemeanor	\$500.00/MA
261.6(h)	Removing any timber, tree or other forest product, except as authorized by a special-use authorization, timber sale contract, or Federal law or regulation	B Misdemeanor	No Permit/\$200.00 No Validation \$100.00
261.6(i)	Violating the Forest Resources Conservation and Shortage Relief Act of 1990 (16 U.S.C. 620, <i>et seq.</i>), or its implementing regulations at 36 CFR 223.185B223.203	B Misdemeanor	\$500.00/MA

Livestock

The following are prohibited:

Section	Offense	Classification	Bail
261.7(a)	Placing or allowing unauthorized livestock to enter or be in the National Forest System or other lands under Forest Service control	B Misdemeanor	\$250.00/MA +50.00 per animal per day
261.7(b)	Not removing unauthorized livestock from the National Forest System or other lands under Forest Service control when requested by a forest officer	B Misdemeanor	\$250.00/MA
261.7(c)	Failing to re-close any gate or other entry	B Misdemeanor	\$100.00
261.7(d)	Molesting, injuring, removing, or releasing any livestock impounded under '262.10 while in the custody of the Forest Service or its authorized agents	B Misdemeanor	\$500.00/MA

Fish and Wildlife

The following are prohibited to the extent Federal or State law is violated:

Section	Offense	Classification	Bail
261.8(a)	Hunting, trapping, fishing, catching, molesting, killing or having in possession any kind of wild animal, bird, or fish, or taking the eggs of any such bird	B Misdemeanor	\$500.00/MA Big game/ Bear/ Cougar \$200.00/MA Small game/ fishing
261.8(b)	Possessing a firearm or other implement designed to discharge a missile capable of destroying human life	B Misdemeanor	\$250.00
261.8(c)	Possessing equipment which could be used for hunting, fishing, or trapping	B Misdemeanor	\$250.00
261.8(d)	Possessing a dog not on a leash or otherwise confined	B Misdemeanor	\$50.00
261.8(e)	Curtail the free movement of any animal or plant life into or out of a cave, except as authorized to protect a cave resource	B Misdemeanor	\$100.00

Property

The following are prohibited.

Section	Offense	Classification	Bail
261.9(a)	Damaging any natural feature or other property of the United States	B Misdemeanor	\$250.00/MA
261.9(b)	Removing any natural feature or other property of the United States	B Misdemeanor	\$250.00/MA
261.9(c)	Damaging any plant that is classified as a threatened, endangered, sensitive, rare, or unique species	B Misdemeanor	\$250.00/MA
261.9(d)	Removing any plant that is classified as a threatened, endangered, sensitive, rare, or	B Misdemeanor	\$250.00/MA

	unique species		
261.9(e)	Entering any building, structure, or enclosed area owned or controlled by the United States when such building, structure, or enclosed area is not open to the public	B Misdemeanor	\$200.00
261.9(f)	Using any pesticide except for personal use as an insect repellent or as provided by special-use authorization for other minor uses	B Misdemeanor	\$250.00/MA
261.9(g)	Digging in, excavating, disturbing, injuring, destroying, or in any way damaging any prehistoric, historic, or archaeological resource, structure, site, artifact, or property	B Misdemeanor	\$500.00/MA
261.9 (h)	Removing any prehistoric, historic, or archaeological resource, structure, site, artifact, property	B Misdemeanor	\$200.00/MA
261.9 (i)	Excavating, damaging, or removing any cave resource from a cave without a special use authorization, or removing any cave resource for commercial purposes	B Misdemeanor	\$200.00/MA
261.9 (j)	Damaging or removing without authorization any personal property that belongs to another person	B Misdemeanor	\$200.00/MA

Occupancy and Use

The following are prohibited.

Section	Offense	Classification	Bail
261.10(a)	Constructing, placing, or maintaining any kind of road, trail, structure, fence, enclosure, communications equipment, or other improvement on National Forest System lands or facilities without a special use authorization, contract, or approved operating plan, unless such authorization, contract, or operating plan is waived pursuant to '251.50(e) of this chapter	B Misdemeanor	\$200.00/MA

261.10(b)	Taking possession of, occupying, or otherwise using National Forest System lands for residential purposes without a special- use authorization, or as otherwise authorized by Federal law or regulation	B Misdemeanor	\$200.00/MA
261.10(c)	Selling or offering for sale any merchandise or conducting any kind of work activity or service unless authorized by Federal law, regulation, or special-use authorization	B Misdemeanor	Sell: \$200.00 Conducting Business \$500.00
261.10(d)	Discharging a firearm or any other implement capable of taking human life, causing injury, or damaging property as follows: (1) In or within 150 yards of a residence, building, campsite, developed recreation site or occupied area, or (2) Across or on a National Forest System road or a body of water adjacent thereto, or in any manner or place whereby any person or property is exposed to injury or damage as a result in such discharge, or (3) Into or within any cave	B Misdemeanor	\$250.00/MA
261.10(e)	Leaving personal property unattended for longer than 72 hours, except in locations where longer periods have been designated - Small items less than 500 pounds, such as camping equipment, appliances, wilderness caches which can be removed without special equipment, such as hoists, tow trucks, etc. - Larger items more than 500 pounds, such as construction equipment, automobiles, camper, trailers, which require special equipment and/or procedures for removal.	B Misdemeanor	\$150.00 \$300.00
261.10(f)	Placing a vehicle or other object in such a manner that it is an impediment or hazard to the safety or convenience of any person	B Misdemeanor	\$150.00
261.10(g)	Commercial distribution of printed material without a special use authorization	B Misdemeanor	\$100.00

261.10(h)	When commercially distributing printed material, delaying, halting, or preventing administrative use of an area by the Forest Service or other scheduled or existing uses or activities on National Forest System lands; misrepresenting the purposes or affiliations of those selling or distributing the material; or misrepresenting the availability of the material without cost	B Misdemeanor	\$100.00
261.10(i)	Operating or using in or near a campsite, developed recreation site, or over an adjacent body of water without a permit, any device which produces noise, such as a radio, television, musical instrument, motor or engine in such a manner and at such a time so as to unreasonably disturb any person	B Misdemeanor	\$200.00
261.10(j)	Operating or using a public address system, whether fixed, portable or vehicle mounted, in or near a campsite or developed recreation site or over an adjacent body of water without a special-use authorization	B Misdemeanor	\$200.00
261.10(k)	Use or occupancy of National Forest System land or facilities without special-use authorization when such authorization is required	B Misdemeanor	\$250.00/MA
261.10(l)	Violating any term or condition of a special-use authorization, contract or approved operating plan	B Misdemeanor	\$200.00
261.10(m)	Failing to stop a vehicle when directed to do so by a Forest Officer	B Misdemeanor	\$250.00/MA
261.10(n)	Failing to pay any special use fee or other charges as required	B Misdemeanor	\$100.00
261.10(o)	Use or occupancy of National Forest System lands or facilities without a special use authorization, contract, approved plan of operations, or other written authorization when that written authorization is required	B Misdemeanor	\$250.00
261.10(p)	Knowingly or intentionally possessing any controlled substance in violation of Federal law	B Misdemeanor	\$400.00

261.10(q)	Knowingly or intentionally possessing any drug paraphernalia in violation of State law	B Misdemeanor	\$200.00
261.10(r)	Possessing any alcoholic beverage in violation of State law	B Misdemeanor	\$200.00
261.10(s)	Providing any alcoholic beverage to a minor in violation of State law	B Misdemeanor	\$250.00

Sanitation

The following are prohibited:

Section	Offense	Classification	Bail
261.11(a)	Depositing in any toilet, toilet vault, or plumbing fixture any substance which could damage or interfere with the operation or maintenance of the fixture	B Misdemeanor	\$150.00
261.11(b)	Possessing or leaving refuse, debris, or litter in an exposed or unsanitary condition	B Misdemeanor	\$200.00
261.11(c)	Placing in or near a stream, lake, or other water any substance which does or may pollute a stream, lake, or other water	B Misdemeanor	\$200.00
261.11(d)	Failing to dispose of all garbage, including any paper, can, bottle, sewage, waste water or material, or rubbish either by removal from the site or area, or by depositing it into receptacles or at places provided for such purposes	B Misdemeanor	\$200.00
261.11(e)	Dumping of any refuse, debris, trash or litter brought as such from private property or from land occupied under permit, except, where a container, dump or similar facility has been provided and is identified as such, to receive trash generated from private lands or lands occupied under permit	B Misdemeanor	\$500.00

National Forest System Roads and Trails

The following are prohibited:

Section	Offense	Classification	Bail
261.12(a)	Violating the load, weight, height, length, or width limitations prescribed by State law except by special-use authorization or written agreement or by order issued under '261.54 of this Chapter	B Misdemeanor	\$100.00
261.12(b)	Failing to have a vehicle weighed at a Forest Service weighing station, if required by a sign	B Misdemeanor	\$100.00
261.12(c)	Damaging and leaving in a damaged condition any such road, trail, or segment thereof	B Misdemeanor	\$100/MA
261.12(d)	Blocking, restricting, or otherwise interfering with the use of a road, trail, or gate	B Misdemeanor	\$100.00
261.12(e)	Operating a motor vehicle without a valid license as required by State law	B Misdemeanor	\$200.00
261.12(f)	Operating a motor vehicle while under the influence of an alcoholic beverage or a controlled substance in violation of State law	B Misdemeanor	\$500.00/MA
261.12(g)	Operating a motor vehicle in violation of any State law other than those described in paragraph (e) or (f) of this section 5-9 MPH over posted speed limit 10-19 MPH over posted speed limit 20-29 MPH over posted speed limit 30+ MPH over posted speed limit Driving with revoked license Driving without vehicle insurance Fictitious/altered/revoked license or plates	B Misdemeanor	\$250.00 \$100.00 \$150.00 \$200.00 \$500.00/MA \$350.00 \$300.00 \$500.00/MA
261.12(h)	Operating a vehicle or motor vehicle carelessly, recklessly, or in a manner or at a speed that would endanger or be likely to endanger any person or property	B Misdemeanor	\$500.00/MA

261.12(i)	Operating a motor vehicle in violation of a posted sign or traffic control device	B Misdemeanor	\$150.00
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Motor Vehicle Use

The following are prohibited

Section	Offense	Classification	Bail
261.13	After National Forest System roads, National Forest System trails, and areas on National Forest System lands have been designated pursuant to 36 CFR 212.51 on an administrative unit or a Ranger District of the National Forest System, and these designations have been identified on a motor vehicle use map, <u>it is prohibited to possess or operate a motor vehicle on National Forest System lands in that administrative unit or Ranger District other than in accordance with those designations</u> , provided that the following vehicles and uses are exempted from this prohibition: (a) Aircraft; (b) Watercraft; (c) Over- snow vehicles; (d) Limited administrative use by the Forest Service; (e) Use of any fire, military, emergency, or law enforcement vehicle for emergency purposes; (f) Authorized use of any combat or combat support vehicle for national defense purposes; (g) Law enforcement response to violations of law, including pursuit; (h) Motor vehicle use that is specifically authorized under a written authorization issued under Federal law or regulations; and (i) Use of a road or trail that is authorized by a legally documented right-of-way held by a State, county, or other local public road authority	B Misdemeanor	\$250.00

Use by Over-Snow Vehicles

The following are prohibited

Section	Offense	Classification	Bail
261.14	<u>It is prohibited to possess or operate an over-snow vehicle on National Forest System lands in violation of a restriction or prohibition established</u> pursuant to 36 CFR part 212, subpart C, provided that the following uses are exempted from this section: (a) Limited administrative use by the Forest Service; (b) Use of any fire, military, emergency, or law enforcement vehicle for emergency purposes; (c) Authorized use of any combat or combat support vehicle for national defense purposes; (d) Law enforcement response to violations of law, including pursuit; (e) Use by over-snow vehicles that is specifically authorized under a written authorization issued under Federal law or regulations; and (f) Use of a road or trail that is authorized by a legally documented right-of-way held by a State, county, or other local public road authority	B Misdemeanor	\$250.00

Use of Vehicles Off Roads

It is prohibited to operate any vehicle off National Forest System, State or County roads:

Section	Offense	Classification	Bail
261.15(a)	Without a valid license as required by State law	B Misdemeanor	\$150.00
261.15(b)	Without an operable braking system	B Misdemeanor	\$75.00
261.15(c)	From one-half hour after sunset to one-half hour before sunrise unless equipped with working head and tail lights	B Misdemeanor	\$75.00
261.15(d)	In violation of any applicable noise emission standard established by any Federal or State agency	B Misdemeanor	\$100.00
261.15(e)	While under the influence of alcohol or	B Misdemeanor	\$500.00/MA

	controlled substances in violation of state law		
261.15(f)	Creating excessive or unusual smoke	B Misdemeanor	\$150.00
261.15(g)	Carelessly, recklessly, or in a manner or at a speed that endangers or is likely to endanger any person or property	B Misdemeanor	\$500.00
261.15(h)	In a manner which damages or unreasonably disturbs the land, wildlife, or vegetative resources	B Misdemeanor	\$350.00
261.15(i)	In violation of State law established for vehicles used off roads	B Misdemeanor	\$100.00

Developed Recreation Sites

The following are prohibited:

Section	Offense	Classification	Bail
261.16(a)	Occupying any portion of the site for other than recreation purposes	B Misdemeanor	\$75.00
261.16(b)	Building, attending, maintaining, or using a fire outside of a fire ring provided by the Forest Service for such purpose or outside of a stove, grill or fireplace	B Misdemeanor	\$75.00
261.16(c)	Cleaning or washing any personal property, fish, animal, or food, or bathing or washing at a hydrant or water faucet not provided for that purpose	B Misdemeanor	\$50.00
261.16(d)	Discharging or igniting a firecracker, rocket or other firework, or explosive	B Misdemeanor	\$200.00
261.16(e)	Occupying between 10 p.m. and 6 a.m. a place designated for day use only	B Misdemeanor	\$75.00
261.16(f)	Failing to remove all camping equipment or personal property when vacating the area or site	B Misdemeanor	\$75.00
261.16(g)	Placing, maintaining, or using camping equipment except in a place specifically designated or provided for such equipment	B Misdemeanor	\$75.00

261.16(h)	Without permission, failing to have at least one person occupy a camping area during the first night after camping equipment has been set up	B Misdemeanor	\$75.00
261.16(i)	Leaving camping equipment unattended for more than 24 hours without permission	B Misdemeanor	\$75.00
261.16(j)	Bringing in or possessing an animal, other than a seeing eye dog, unless it is crated, caged, or upon a leash not longer than six feet, or otherwise under physical restrictive control	B Misdemeanor	\$75.00
261.16(k)	Bringing in or possessing in a swimming area an animal, other than a seeing eye dog	B Misdemeanor	\$75.00
261.16(l)	Bringing in or possessing a saddle, pack, or draft animal except as authorized by posted instructions	B Misdemeanor	\$75.00
261.16(m)	Operating or parking a motor vehicle or trailer except in places developed or designated for this purpose	B Misdemeanor	\$50.00
261.16(n)	Operating a bicycle, motorbike, or motorcycle on a trail unless designated for this use	B Misdemeanor	\$75.00
261.16(o)	Operating a motorbike, motorcycle, or other motor vehicle for any purpose other than entering or leaving the site	B Misdemeanor	\$100.00
261.16(p)	Depositing any body waste except into receptacles provided for that purpose	B Misdemeanor	\$200.00

Recreation Fees

261.17	Failure to pay any recreation fee is prohibited. Notwithstanding 18 U.S.C. 3571(e), the fine imposed for the first offense of nonpayment shall not exceed \$100.00	B Misdemeanor	\$50.00
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National Forest Wilderness

The following are prohibited in a National Forest Wilderness:

Section	Offense	Classification	Bail
261.18(a)	Possessing or using a motor vehicle, motorboat or motorized equipment except as authorized by Federal Law or regulation	B Misdemeanor	\$500.00
261.18(b)	Possessing or using a hang glider or bicycle	B Misdemeanor	\$300.00
261.18(c)	Landing of aircraft, or dropping or picking up of any material, supplies, or person by means of aircraft, including a helicopter	B Misdemeanor	\$500.00

Pacific Crest National Scenic Trail

261.20	It is prohibited to use a motorized vehicle on the Pacific Crest National Scenic Trail without a special-use authorization	B Misdemeanor	\$500.00
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National Forest Primitive Areas

The following are prohibited in any area classified as a National Forest Primitive Area on September 3, 1964:

Section	Offense	Classification	Bail
261.21(a)	Landing of aircraft or using a motor boat, unless such use had become well established before September 3, 1964	B Misdemeanor	\$500.00
261.21(b)	Possessing or using a motor or motorized equipment, except small battery powered, hand-held devices, such as cameras, shavers, flashlights, and Geiger-counters.	B Misdemeanor	\$250.00

Unauthorized Use of "Smokey Bear" and "Woodsy Owl" Symbol

Section	Offense	Classification	Bail
261.22(a)	Manufacture, importation, reproduction, or use of "Smokey Bear" except as provided under "271.2, 271.3, or 271.4 is prohibited	B Misdemeanor	\$250.00

261.22(b)	Manufacture, importation, reproduction, or use of "Woodsy Owl" except as provided under "272.2, 272.3, or 272.4 is prohibited	B Misdemeanor	\$250.00
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Wild Free-Roaming Horses and Burros

The following are prohibited:

Section	Offense	Classification	Bail
261.23(a)	Removing or attempting to remove a wild free-roaming horse or burro from the National Forest System unless authorized by law or regulation	B Misdemeanor	MA
261.23(b)	Causing or allowing the inhumane treatment or harassment of a wild free-roaming horse or burro	B Misdemeanor	MA
261.23(c)	Removing or attempting to remove, alter or destroy any official mark used to identify a wild horse or burro or its remains unless authorized or permitted by law or regulation	B Misdemeanor	MA
261.23(d)	Violating any terms or conditions specified in a care and maintenance agreement or permit	B Misdemeanor	\$250.00

PART 261 - SUBPART B- PROHIBITIONS IN AREAS DESIGNATED BY ORDER

Fire

When provided by an Order, the following are prohibited:

Section	Offense	Classification	Bail
261.52(a)	Building, maintaining, attending or using a fire, campfire, or stove fire	B Misdemeanor	\$250.00
261.52(b)	Using an explosive	B Misdemeanor	\$150.00
261.52(c)	Smoking	B Misdemeanor	\$250.00

261.52(d)	Smoking, except within an enclosed vehicle or building, a developed recreation site, or while stopped in an area at least three feet in diameter that is barren or cleared of all flammable material	B Misdemeanor	\$250.00
261.52(e)	Entering or being upon an area	B Misdemeanor	\$250.00
261.52(f)	Entering an area without any firefighting tool prescribed by the order	B Misdemeanor	\$75.00
261.52(g)	Operating an internal combustion engine	B Misdemeanor	\$50.00
261.52(h)	Welding or operating an acetylene or other torch with open flame	B Misdemeanor	\$250.00

Special Closures

When provided in an Order, it is prohibited to go into or be upon any area which is closed or restricted for the protection of:

Section	Offense	Classification	Bail
261.53(a)	Threatened, endangered, rare, unique, or vanishing species of plants, animals, birds or fish	B Misdemeanor	\$200.00
261.53(b)	Special biological communities	B Misdemeanor	\$200.00
261.53(c)	Objects or areas of historical, archeological, geological, or paleontological interest	B Misdemeanor	\$200.00
261.53(d)	Scientific experiments or investigations	B Misdemeanor	\$200.00
261.53(e)	Public health or safety	B Misdemeanor	\$500.00
261.53(f)	Property	B Misdemeanor	\$200.00
261.53(g)	The privacy of tribal activities for traditional and cultural purposes. Closure to protect the privacy of tribal activities for traditional and cultural purposes must be requested by an Indian tribe; is subject to approval by the Forest Service; shall be temporary; and shall effect the smallest practicable area for the minimum period necessary for the activities of the requesting	B Misdemeanor	\$300.00

	Indian tribe.		
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National Forest System Roads

When provided by an Order, the following are prohibited:

Section	Offense	Classification	Bail
261.54(a)	Using any type of vehicle prohibited by the Order	B Misdemeanor	\$200.00
261.54(b)	Use by any type of traffic prohibited by the Order	B Misdemeanor	\$200.00
261.54(c)	Using a road for commercial hauling without a permit or written authorization	B Misdemeanor	\$250.00
261.54(d)	Operating a vehicle in violation of the speed, load, weight, height, length, width, or other limitations specified by the Order	B Misdemeanor	\$150.00
261.54(e)	Being on the road	B Misdemeanor	\$200.00

National Forest System Trails

When provided by an order issued in accordance with '261.50 of this subpart, the following are prohibited on a National Forest System trail:

Section	Offense	Classification	Bail
261.55(a)	Being on a trail	B Misdemeanor	\$200.00
261.55(b)	Using any type of vehicle prohibited by the order	B Misdemeanor	\$200.00
261.55(c)	Use by any type of traffic or mode of transport prohibited by the Order	B Misdemeanor	\$200.00
261.55(d)	Operating a vehicle in violation of the width, weight, height, length, or other limitations specified by the Order	B Misdemeanor	\$200.00

261.55(e)	Shortcutting a switchback in a trail	B Misdemeanor	\$100.00
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Use of Vehicles Off National Forest System Roads

Section	Offense	Classification	Bail
261.56	When provided by an Order, it is prohibited to possess or use a vehicle off National Forest System roads	B Misdemeanor	\$200.00

National Forest Wilderness

When provided by an Order, the following are prohibited:

Section	Offense	Classification	Bail
261.57(a)	Entering or being in the area	B Misdemeanor	\$100.00
261.57(b)	Possessing camping or pack-outfitting equipment, as specified in the Order	B Misdemeanor	\$100.00
261.57(c)	Possessing a firearm or firework	B Misdemeanor	\$150.00
261.57(d)	Possessing any non-burnable food or beverage containers, including deposit bottles, except for non-burnable containers designed and intended for repeated use	B Misdemeanor	\$100.00
261.57(e)	Grazing	B Misdemeanor	\$100.00
261.57(f)	Storing equipment, personal property or supplies	B Misdemeanor	\$200.00
261.57(g)	Disposing of debris, garbage, or other waste	B Misdemeanor	\$200.00
261.57(h)	Possessing or using a wagon, cart or other vehicle	B Misdemeanor	\$200.00

Occupancy and Use

When provided by an Order, the following are prohibited:

Section	Offense	Classification	Bail
261.58(a)	Camping for a period longer than allowed by the Order	B Misdemeanor	\$100.00 Extra Day: \$20.00
261.58(b)	Entering or using a recreation site or portion thereof	B Misdemeanor	\$50.00

261.58(c)	Entering or remaining in a campground during night periods prescribed in the Order except for persons who are occupying such campgrounds	B Misdemeanor	\$75.00
261.58(d)	Occupying a recreation site with prohibited camping equipment prescribed by the Order	B Misdemeanor	\$50.00
261.58(e)	Camping	B Misdemeanor	\$100.00 Extra day: \$20.00
261.58(f)	Using a campsite or other area described in the order by more than the number of users allowed by the Order	B Misdemeanor	\$50.00 Oversized group in Wilderness \$100.00/MA
261.58(g)	Parking or leaving a vehicle in violation of posted instructions	B Misdemeanor	\$50.00
261.58(h)	Parking or leaving a vehicle outside a parking space assigned to one's own camp unit	B Misdemeanor	\$50.00
261.58(i)	Possessing, parking or leaving more than two vehicles, except motorcycles or bicycles per camp unit	B Misdemeanor	\$50.00
261.58(j)	Being publicly nude	B Misdemeanor	\$100.00
261.58(k)	Entering or being in a body of water	B Misdemeanor	\$50.00
261.58(l)	Being in the area after sundown or before sunrise	B Misdemeanor	\$75.00
261.58(m)	Discharging a firearm, air rifle, or gas gun	B Misdemeanor	\$100.00
261.58(n)	Possessing or operating a motorboat	B Misdemeanor	\$50.00
261.58(o)	Water skiing	B Misdemeanor	\$50.00
261.58(p)	Storing or leaving a boat or raft	B Misdemeanor	\$50.00
261.58(q)	Operating any watercraft in excess of a posted speed limit	B Misdemeanor	\$50.00
261.58(r)	Launching a boat except at a designated launching	B Misdemeanor	\$50.00

	ramp		
261.58(s)	Possessing, storing, or transporting any bird, fish, or other animal or parts thereof, as specified in the Order	B Misdemeanor	Big Game \$500.00 Fish/Small Game \$200.00
261.58(t)	Possessing, storing, or transporting any part of a tree or other plant, as specified in the Order	B Misdemeanor	\$50.00
261.58(u)	Being in the area between 10 p.m. and 6 a.m. except a person who is camping or who is visiting a person camping in that area	B Misdemeanor	\$75.00
261.58(v)	Hunting or fishing	B Misdemeanor	\$200.00
261.58(w)	Possessing or transporting any motor or mechanical device capable of propelling a watercraft through water by any means	B Misdemeanor	\$75.00
261.58(x)	Using any wheel, roller, or other mechanical device for the overland transportation of any watercraft.	B Misdemeanor	\$75.00
261.58(y)	Landing of aircraft, or dropping or picking up any material, supplies, or person by means of an aircraft, including a helicopter	B Misdemeanor	\$500.00
261.58(z)	Entering or being on lands or waters within the boundaries of a component of the National Wild and Scenic Rivers System	B Misdemeanor	\$100.00
261.58(aa)	Riding, hitching, tethering or hobbling a horse or other saddle or pack animal in violation of posted instructions	B Misdemeanor	\$50.00
261.58(bb)	Possessing an alcoholic beverage	B Misdemeanor	\$200.00
261.58(cc)	Possessing or storing any food or refuse, as specified in the order	B Misdemeanor	\$150.00
261.58(dd)	[Reserved]		

261.58(ee)	Depositing any body waste in caves except into receptacles provided for that purpose	B Misdemeanor	\$150.00/MA
21 U.S.C. § 844(A)	Simple possession of marijuana	A Misdemeanor	\$250.00/MA

IV
VETERANS ADMINISTRATION
TITLE 38, CODE OF FEDERAL REGULATIONS
Restricted or Prohibited Acts

Preservation of Property

Section	Offense	Classification	Bail
1.218(b)(1)	Improper disposal of rubbish on property	B Misdemeanor	\$200.00
1.218(b)(2)	Spitting on property	B Misdemeanor	\$50.00
1.218(b)(3)	Throwing of articles from a building or the unauthorized climbing upon any part of a building	B Misdemeanor	\$150.00
1.218(b)(4)	Willful destruction, damage or removal of government property without authorization	B Misdemeanor	\$500.00/ MA
1.218(b)(5)	Defacement, destruction, mutilation or injury to, or removal, or disturbance of, grave marker or headstone	B Misdemeanor	\$500.00/ MA

Conformity with Signs and Emergency Directions

Section	Offense	Classification	Bail
1.218(b)(6)	Failure to comply with signs of a directive and restrictive nature posted for safety purposes	B Misdemeanor	\$100.00
1.218(b)(7)	Tampering with, removal, marring, or destruction of posted signs	B Misdemeanor	\$150.00
1.218(b)(8)	Entry into areas posted as closed to the public or others (trespass)	B Misdemeanor	\$200.00

Disturbances

Section	Offense	Classification	Bail
1.218(b)(9)	Unauthorized demonstration or service in a national cemetery or on other VA property	B Misdemeanor	\$250.00/ MA
1.218(b)(10)	Creating a disturbance during a burial ceremony	B Misdemeanor	\$250.00

1.218(b)(11)	Disorderly conduct which creates loud, boisterous, and unusual noise, or which obstructs the normal use of entrances, exits, foyers, offices, corridors, elevators, and stairways or which tends to impede or to prevent the normal operation of a service or operation of the facility	B Misdemeanor	\$250.00/MA
1.218(b)(12)	Failure to depart premises by unauthorized persons	B Misdemeanor	\$50.00
1.218(b)(13)	Unauthorized loitering, sleeping, or assembling on property	B Misdemeanor	\$150.00
1.218(b)(14)	Gambling - participating in games of chance for monetary gain or personal property; the operation of gambling devices, a pool or lottery; or the taking or giving of bets	B Misdemeanor	\$200.00/MA

Alcoholic Beverages and Narcotic

Section	Offense	Classification	Bail
1.218(b)(15)	Operation of a vehicle under the influence of alcoholic beverages or non-prescribed narcotic drugs, hallucinogens, marijuana, barbiturates, or amphetamines	B Misdemeanor	\$500.00/MA
1.218(b)(16)	Entering premises under the influence of alcoholic beverages, narcotic drugs, hallucinogens, marijuana, barbiturates, or amphetamines	B Misdemeanor	\$200.00/MA
1.281(b)(17)	Unauthorized use on property of alcoholic beverages, narcotic drugs, hallucinogens, marijuana, barbiturates, or amphetamines	B Misdemeanor	\$300.00/MA
1.218(b)(18)	Unauthorized introduction on VA controlled property of alcoholic beverages or narcotic drugs, hallucinogens, marijuana, barbiturates, or amphetamines or the unauthorized giving of same to a patient or beneficiary	B Misdemeanor	\$500.00/MA

Soliciting, Vending, and Debt Collection

Section	Offense	Classification	Bail
1.218(b)(19)	Unauthorized solicitation of alms and contributions on premises	B Misdemeanor	\$50.00/MA
1.218(b)(20)	Commercial soliciting or vending, or the collection of private debts on property	B Misdemeanor	\$150.00/M A

Distribution of Handbills

Section	Offense	Classification	Bail
1.218(b)(21)	Distribution of pamphlets, handbills, and flyers	B Misdemeanor	\$100.00
1.218(b)(22)	Display of placards or posting of material on property	B Misdemeanor	\$25.00

Unauthorized Photography

Section	Offense	Classification	Bail
1.218(b)(23)	Unauthorized photography on premises	B Misdemeanor	\$150. 00

Vehicular and Pedestrian Traffic

Section	Offense	Classification	Bail
1.218(b)(24)	Failure to comply with traffic directions of VA police	B Misdemeanor	\$75.00/MA
1.218(b)(25)	Parking in spaces posted as reserved for physically disabled persons	B Misdemeanor	\$100.00
1.218(b)(26)	Parking in no parking areas, lanes, or crosswalks so posted or marked by yellow borders or yellow stripes	B Misdemeanor	\$25.00
1.218(b)(27)	Parking in emergency vehicle spaces, areas and lanes bordered in red or posted as EMERGENCY VEHICLES ONLY or FIRE LANE, or parking within 15 feet of a fire hydrant	B Misdemeanor	\$50.00
1.218(b)(28)	Parking within an intersection or blocking a posted vehicle entrance or posted exit lane	B Misdemeanor	\$25.00
1.218(b)(29)	Parking in spaces posted as reserved or in excess of a posted time limit	B Misdemeanor	\$15.00

1.218(b)(30)	Failing to come to a complete stop at a STOP sign	B Misdemeanor	\$50.00
1.218(b)(31)	Failing to yield to a pedestrian in a marked and posted crosswalk	B Misdemeanor	\$50.00
1.218(b)(32)	Driving in the wrong direction on a posted one-way street	B Misdemeanor	\$50.00
1.218(b)(33)	Operation of a vehicle in a reckless or unsafe manner, too fast for conditions, drag racing, overriding curbs, or leaving the roadway	B Misdemeanor	\$200.00/M A
1.218(b)(34)(i)-(iii)	Exceeding posted speed limits:	B Misdemeanor	\$25.00 1-10mph over \$50.00 11-20mph over \$100.00 21+mph over
1.218(b)(35)	Creating excessive noise in a hospital by muffler cut out, excessive use of a horn, or other means	B Misdemeanor	\$50.00
1.218(b)(36)	Failure to yield right of way to other vehicles	B Misdemeanor	\$50.00

Weapons and Explosives

Section	Offense	Classification	Bail
1.218(b)(37)	Possession of firearms, carried either openly or concealed, whether loaded or unloaded, except by federal or state law enforcement officers on official business	B Misdemeanor	\$500.00/M A
1.218(b)(38)	Introduction or possession of explosives, or explosive devices which fire a projectile, ammunition, or combustibles	B Misdemeanor	\$500.00/M A
1.218(b)(39)	Possession of knives which exceed a blade length of 3 inches; switch blade knives; any of the variety	B Misdemeanor	\$300.00/M A

	of hatchets, clubs and hand held weapons; or brass knuckles		
1.218(b)(40)	Unauthorized possession of any of the variety of incapacitating liquid or gas emitting weapons	B Misdemeanor	\$200.00/M A

Key Security

Section	Offense	Classification	Bail
1.218(b)(41)	Unauthorized possession, manufacture, or use of keys or barrier card type keys to rooms or areas on the property	B Misdemeanor	\$200.00/M A
1.218(b)(42)	Surreptitious opening, or attempted opening, of locks or card operated barrier mechanisms on property	B Misdemeanor	\$500.00/M A

Sexual Misconduct

Section	Offense	Classification	Bail
1.218(b)(43)	Soliciting for, or the act of, prostitution	B Misdemeanor	\$250.00/M A
1.218(b)(44)	Any unlawful sexual activity	B Misdemeanor	\$500.00/M A
1.218(b)(45)	Jogging, bicycling, sledding or any recreational physical activity conducted on cemetery grounds	B Misdemeanor	\$50.00

V
UNITED STATES POSTAL SERVICE
TITLE 39, CODE OF FEDERAL REGULATIONS
Restricted or Prohibited Acts

Conduct on Postal Property

Section	Offense	Classification	Bail
232.1(b)(1)	Inspection of purses, briefcases and other containers	C Misdemeanor	\$25.00
232.1(b)	Failure to sign register upon entering when property is closed as required by security force	C Misdemeanor	\$75.00
232.1(c)	Improperly disposing of rubbish and postal property	C Misdemeanor	\$100.00
232.1(c)	Spitting on postal property	C Misdemeanor	\$25.00
232.1(c)	Creating any hazard to persons or things	C Misdemeanor	\$100.00
232.1(c)	Throwing any articles of any kind from building	C Misdemeanor	\$100.00
232.1(c)	Climbing upon the roof or any part of building	C Misdemeanor	\$100.00
232.1(c)	Willfully destroying, damaging, or removing any property or part thereof	C Misdemeanor	\$250.00
232.1(d)	Failure to comply with official signs of a prohibitory or directory nature	C Misdemeanor	\$100.00
232.1(d)	Failure to comply with directions of Security Force personnel or other authorized individuals	C Misdemeanor	\$150.00/MA
232.1(e)	Disturbance or disorderly conduct	C Misdemeanor	\$200.00/MA
232.1(e)	Creating loud and unusual noise	C Misdemeanor	\$75.00
232.1(e)	Obstruction of usual use of public areas	C Misdemeanor	\$75.00
232.1(f)	Gambling for money or other personal property	C Misdemeanor	\$100.00
232.1(f)	Selling or purchasing lottery tickets	C Misdemeanor	\$100.00
232.1(g)	Operating a motor vehicle under the influence of alcoholic beverages or drug defined as a controlled substance	C Misdemeanor	\$300.00/MA
232.1(g)	Possession, sale or use of a controlled substance (except as medically approved)	C Misdemeanor	\$500.00/MA

232.1(g)	Sale or use of alcoholic beverage	C Misdemeanor	\$100.00/MA
232.1(h)	Soliciting, electioneering, collecting debts, vending and advertising	C Misdemeanor	\$100.00
232.1(i)	Photographs for news, advertising or commercial purposes	C Misdemeanor	\$250.00/MA
232.1(j)	Dogs and other animals on property	C Misdemeanor	\$50.00
232.1(k)(1)	Compliance with traffic signs, signals and directions of security force	C Misdemeanor	\$75.00
232.1(k)(2)	Blocking entrances, driveways, walks, loading platforms or fire hydrants	C Misdemeanor	\$25.00
232.1(k)(3)	Parking without authority over 18 hours without permission or contrary to postal signs	C Misdemeanor	\$25.00
232.1(k)(3)	Unauthorized parking in designated handicapped area or reserved locations	C Misdemeanor	\$25.00
232.1(l)	Carrying firearms, other dangerous or deadly weapons or explosives	C Misdemeanor	\$250.00/MA
232.1(m)	Non discrimination	C Misdemeanor	\$100.00/MA
232.1(n)(2)	Conduct disruptive of meetings of Board of Governors	C Misdemeanor	\$100.00/MA
232.1(o)	Prohibited distribution or posting of literature	C Misdemeanor	\$75.00

TITLE 18, UNITED STATES CODE

Conduct of Postal Employees

Section	Offense	Classification	Bail
641	Theft of Government Property less than \$1,000	C Misdemeanor	\$300.00
649	Failure to Deposit Moneys less than \$1,000	C Misdemeanor	\$300.00
1703	Delay or Destruction of Mail or Newspaper	C Misdemeanor	\$300.00
1713	Issuance of Money Orders Without Payment	C Misdemeanor	\$300.00
1711	Misappropriation of Postal Funds less than \$1000	C Misdemeanor	\$300.00
1982	False Statement of Fraud to Obtain Federal Employee Compensation less than \$1,000	C Misdemeanor	\$300.00

VI
FISH AND WILDLIFE SERVICE
VIOLATIONS OF UNITED STATES
TITLE 50, CODE OF FEDERAL REGULATIONS
Restricted or Prohibited Acts

General Fish & Wildlife Regulations

(16 USC 704; 16 USC 668a; 16 USC 1538(d); 16 USC 3373)

50 CFR 13: General Permit Procedures

Section	Offense	Classification	Bail
13.1 thru 13.29	General violation of permit requirements	B Misdemeanor	\$150.00/MA
13.41	Failure to maintain humane and healthful conditions for live wildlife	B Misdemeanor	\$250.00/MA
13.42	Engaging in activities not specifically authorized by permit	B Misdemeanor	\$250.00/MA commercial \$100.00/MA non-commercial
13.43	Alteration of permit	B Misdemeanor	\$500.00/MA
13.44	Failure to display permit upon request	B Misdemeanor	\$100.00/MA
13.45	Failure to file reports as required	B Misdemeanor	\$150.00/MA
13.46	Failure to maintain records as required	B Misdemeanor	\$250.00/MA
13.47	Failure to permit premise inspection	B Misdemeanor	\$500.00/MA
13.48	Failure to comply with conditions of permit	B Misdemeanor	\$200.00/MA

General Regulations for Importation, Exportation & Transportation of Wildlife

(16 USC 3371, 16 USC 1538)

50 CFR 14: Import, Export & Transportation Regulations

Section	Offense	Classification	Bail
14.11	Import or export wildlife at a non-designated port	B Misdemeanor	\$500.00/ MA

14.14(b)	Knowingly unload in-transit shipment in U.S.	B Misdemeanor	\$1,000.00/MA
14.31 thru 14.33	Violation of non-designated port permit conditions	B Misdemeanor	\$300.00/MA
14.51	Refusal to allow detention/inspection of wildlife	B Misdemeanor	\$1,000.00/MA
14.52	Failure to obtain FWS clearance for imported wildlife prior to release from U.S. Customs	B Misdemeanor	\$500.00/MA
14.61 thru 14.63	Failure to file completed declaration as required	B Misdemeanor	\$500.00/MA
14.81	Ship/transport wildlife in interstate/foreign commerce without properly-marked containers	B Misdemeanor	\$350.00/MA
14.82	Ship in interstate or foreign commerce without complying with marking requirements or alternatives	B Misdemeanor	\$250.00/MA
14.91	Engage in business as importer/exporter of wildlife without obtaining import/export license	B Misdemeanor	\$500.00/MA

50 CFR 14: Humane and Healthful Transport of Wild Mammals and Birds to the U.S.

Section	Offense	Classification	Bail
14.103	Import, transport, cause or permit transport to the U.S. any wild mammal or bird in violation of Humane Transport Regulations	B Misdemeanor	\$500.00/MA + value
14.104	Failure to provide English translation for any required certificate/document	B Misdemeanor	\$150.00/MA
14.105	Unauthorized acceptance by carrier of any wild mammal or bird for transport to the U.S.	B Misdemeanor	\$500.00/MA + value
14.106	Failure by carrier to require proper primary enclosures for transport to U.S.	B Misdemeanor	\$250.00/MA
14.107	Improper animal cargo space of a conveyance	B Misdemeanor	\$500.00/MA + value
14.108	Violation by carrier of food/water requirements	B Misdemeanor	\$250.00/MA + value

14.109(b)	Improper ambient air temperature and ventilation provided by holding area, transporting device, conveyance or terminal facility	B Misdemeanor	\$250.00/MA + value
14.110	Improper or lack of animal holding area	B Misdemeanor	\$500.00/MA+value
14.111	Violation of handling requirements	B Misdemeanor	\$250.00/MA + value
14.121 thru 14.172	Violation of primary enclosure specifications	B Misdemeanor	\$500.00/MA + value

16 USC 4901-4916

Wild Bird Conservation Act of 1992

Section	Offense	Classification	Bail
16 USC 4901 <i>et seq.</i> (50 CFR 15)	Violate any regulations, prohibitions, or regulations of Act relating to the import of any exotic bird...	B Misdemeanor	\$500.00/MA + value

18 USC 42

Lacey Act (Injurious Species) 50 CFR 16: Regulations for the Importation or Shipment of Injurious Species

Section	Offense	Classification	Bail
16.3 thru 16.13(a)	Unauthorized import, transport, acquire or release of prohibited species or their progeny	B Misdemeanor	\$1,000.00/MA +
16.13(b)(1)	Import live/dead or eggs of salmonid of the family Salmonidae which are not accompanied by the required disease-free health certificate	B Misdemeanor	\$500.00/MA
16.14 and 16.15	Release of imported live wild amphibians/reptiles or progeny or eggs thereof to the wild without authorization	B Misdemeanor	\$500.00/MA + \$100.00 per item
16.22	Violation of injurious wildlife permit provisions	B Misdemeanor	\$500.00/MA

16 USC 3371-3778

Lacey Act Amendments of 1981

Section	Offense	Classification	Bail
16 USC 3372(a)	(1) To import, export, transport, sell, receive, acquire, or A Misdemeanor As indicated below purchase any fish/wildlife/plant taken, possessed, transported or sold in violation of any law/treaty/regulation of the U.S. or in violation of any Indian Tribal Law. (2) To import, export, transport, sell, receive, acquire, or purchase in interstate commerce or foreign commerce- (A) any fish/wildlife taken, possessed, transported, or sold in violation of law/regulation of any State or in violation of any foreign law; (B) any plant taken, possessed, transported, or sold, in violation of any law or regulation of any State; or (C) any prohibited wildlife species (<i>*large cats/hybrids B see exceptions</i>) (3) Within the special maritime and territorial jurisdiction of the United States - (A) to possess any fish/wildlife taken, possessed, transported, or sold in violation of any law or regulation of any state, or in violation of any foreign law or Indian Tribal law, or (B) to possess any plant taken, possessed, transported, or sold in violation of any law or regulation of any State.		

Fish..... 250.00 + value Big Game.....1,000.00 + value
 Small game.... 250.00 + value Furbearer 250.00 + value
 Bird..... 500.00 + value Plant.....250.00 +
 value
 Reptile..... 250.00 + value Amphibian 250.00 +
 value
 Other250.00 + value

16 USC 3372(a)(4)	Attempt to commit any act described in 3372(a) paragraphs (1) through (4)	A Misdemeanor	Same as defined offense
16 USC 3372(c)(1)	It is deemed a sale of fish/wildlife in violation of this chapter for a person for money or other consideration to offer or provide (A) guiding, outfitting, or other services; or (B) a hunting or fishing license or permit; for the illegal taking, acquiring, receiving, transporting, or possessing of fish or wildlife	A Misdemeanor	\$1,000.00/M A + value
16 USC 3372(c)(2)	It is deemed to be a purchase of fish/wildlife in violation of this chapter for a person to obtain for money or other consideration- (A) guiding, outfitting, or other services; or	A Misdemeanor	\$1,000.00/M A + value

	(B) a hunting or fishing license or permit; for the illegal taking, acquiring, receiving, transporting, or possessing of fish or wildlife		
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<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
16 USC 3372(d)	Unlawful for any person to make or submit any false record, account, or label for, or any false identification of, any fish, wildlife, or plant which has been, or is intended to be- (1) imported, exported, transported, sold, purchased, or received from any foreign; or (2) transported in interstate or foreign commerce Fish..... 250.00 + value Big Game1,000.00 + value Small game.... 250.00 + value Furbearer 250.00 + value Bird..... 500.00 + value Plant.....250.00 + value Reptile..... 250.00 + value Amphibian 250.00 + value Other250.00 + value	A Misdemeanor	As indicated below

16 USC 1538

Endangered Species Act

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
16 USC 1538(a)(1)(A) thru 16 USC 1538(a)(1)(G)	Import or export any endangered animal species; take within the U.S. or territorial seas of the U.S.; take upon the high seas; deliver, carry, transport, or ship in interstate commerce in the course of a commercial activity; sell in interstate or foreign commerce; violate any regulation	A Misdemeanor	\$2,500.00/MA + value

16 USC 1538(a)(2)(A) thru 16 USC 1538(a)(2)(D)	Import or export any endangered plant; take within the U.S. or territorial seas of the U.S.; take upon the high seas; deliver, carry, transport, or ship in interstate commerce in the course of a commercial activity; sell in interstate or foreign commerce; violate any regulation	A Misdemeanor	\$500.00/M A + value
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50 CFR 17: Regulations pertaining to Endangered Wildlife

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
17.21 (a)(b)(d)	General Endangered Species prohibitions: Attempt, solicit, cause; import, export; possess, transport unlawfully taken wildlife	A Misdemeanor	\$500.00/MA + value
17.21(c)(e)(f)	Take; Sell; Transport; Interstate or Foreign Commerce	A Misdemeanor	\$1,000.00 + value
17.21(g)	Captive-bred wildlife violations	A Misdemeanor	\$50.00 + \$50.00/animal
17.22 thru 17.23	Endangered species permit violations	A Misdemeanor	\$350.00 + \$50.00/animal

50 CFR 17: Regulations pertaining to Threatened Wildlife

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
17.31	Violate threatened wildlife prohibitions	A Misdemeanor	\$500.00 + value
17.40 thru 17.47	Violate special regulations pertaining to threatened wildlife	A Misdemeanor	\$500.00 + value

50 CFR 17: Regulations pertaining to Endangered Plants

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
17.61	Violation of Endangered Plant regulations	A Misdemeanor	\$500.00 + value
17.62 and 17.63	Fail to comply with Permit Conditions	A Misdemeanor	\$250.00

50 CFR 17: Regulations Pertaining to Threatened Plants

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
17.71	Violation of Threatened Plant regulations	A Misdemeanor	\$350.00 + value
17.72	Fail to comply with permit conditions	A Misdemeanor	\$250.00

50 CFR 17: Other Endangered & Threatened Plant Regulations

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
17.82	Violation of general Experimental regulations	A Misdemeanor	\$250.00 + value
17.84 to end	Violation of special regulations	A Misdemeanor	\$250.00 + value

16 USC 1371-1372**Marine Mammal Protection Act**

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
18.11	Unlawful take of marine mammal	A Misdemeanor	\$1,000.00 + value
18.12	Unlawful import of marine mammals	A Misdemeanor	\$1,000.00 + value

15 CFR 18: Regulations Pertaining to Marine**Mammals**

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
18.13	Unlawful port use, transport, purchase, sale of any marine mammal or marine mammal product	A Misdemeanor	\$1,000.00 + value

16 USC 742j Airborne Hunting Act**50 CFR 19: Regulations Pertaining to Airborne Hunting**

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
19.11(a)(1)	Shoot from an aircraft for purposes of capturing or killing wildlife.	A Misdemeanor	\$500.00+value
19.12(a)(2)	Use aircraft to harass wildlife	A Misdemeanor	\$1,000.00
19.11(a)(3)	Participate in using aircraft to shoot or harass wildlife	A Misdemeanor	\$1,000.00+value
19.32(a)	Failure to file annual report	A Misdemeanor	\$250.00

16 USC 703-711**Migratory Bird Treaty Act**

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
16 USC 703	Take, pursue, hunt, capture, kill, or the attempt thereof; possess, sell, barter, purchase, ship, export, import, carry, transport, offer, or cause thereof; migratory birds, their parts, nests, or eggs, without authorization	B Misdemeanor	\$500.00 + \$50.00 (per part/nest/ egg/item) <u>or</u> value (per bird)
16 USC 704(b)(2)	Placed or directed placement of BAIT on or adjacent to an area for the purpose of causing, inducing, or allowing any person to take migratory game birds by the aid of baiting.	A Misdemeanor	\$2,500.00/MA + value
16 USC 705	Ship, transport, carry in interstate or foreign commerce, any bird, part, nest, or egg, thereof, carried contrary to the law of the place where captured, killed, taken, shipped, transported, or carried	B Misdemeanor	\$350.00 + \$50.00 (per part/nest/ egg/item)

			<u>or</u> value (per bird)
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50 CFR 20: Migratory Game Bird Hunting Regulations

Subpart C: TAKING

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
20.20(b)	Hunting migratory game birds without HIP (Harvest Information Program) validation	B Misdemeanor	\$50.00
20.21(a)	Take with illegal firearm, device or substance	B Misdemeanor	\$500.00 value
20.21(b)	Take with shotgun capable of holding more than three(3) shells	B Misdemeanor	\$150.00 + value
20.21(c)	Take by means, aid or use of sink box	B Misdemeanor	\$200.00 + value
20.21(d)	Take from or by means, aid, or use of a motor driven conveyance, motor vehicle or aircraft	B Misdemeanor	\$400.00 + value
20.21(e)	Take by means of motorboat or other craft having motor attached and under power	B Misdemeanor	\$400.00 + value
20.21(f)	Take by use or aid of live decoys	B Misdemeanor	\$250.00 + value
20.21(g)	Take by use or aid of electronic/recorded calls	B Misdemeanor	\$250.00 + value
20.21(h)	Take by means or aid of motor driven conveyance for concentrating, driving, or rallying, or stirring up waterfowl	B Misdemeanor	\$200.00 + value
20.21(i)	Take by aid of BAIT or on or over baited area (where the defendant knew, or reasonably should have known, that the area was a baited area)	B Misdemeanor	\$1,000.00/MA + value
20.21(j)	Take while possessing lead shotshells or shot	B Misdemeanor	\$100.00 + value + \$20.00/lead

			shell + forfeit lead shells
20.22	Take during closed season	B Misdemeanor	\$500.00 + value
20.23	Take before/after legal shooting hours 1-15 min. 16-30 min. 31-45 min. 45+ min.	B Misdemeanor	\$100.00 + value \$200.00 + value \$300.00 + value \$400.00 + value
20.24	Take in excess of daily bag limit	B Misdemeanor	\$300.00 + value
20.25	Wanton waste of migratory birds	B Misdemeanor	\$200.00 + value
20.26	Failure to comply with temporary closure regulations	B Misdemeanor	\$250.00 + value

Subpart D: POSSESSION

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
20.31	Possession of birds taken in violation of Subpart C	B Misdemeanor	\$200.00 + value
20.32	Possess freshly killed migratory birds during closed season	B Misdemeanor	\$300.00 + value
20.33	Exceed possession limit of migratory birds taken in the U.S	B Misdemeanor	\$250.00 + value
20.34	Possess in excess of daily bag limit opening day	B Misdemeanor	\$250.00 + value
20.35	Possess or transport in excess of daily field limit	B Misdemeanor	\$300.00 + value
20.36	Violation of tagging regulations	B Misdemeanor	\$200.00 + value

20.37	Custody of untagged birds of another	B Misdemeanor	\$200.00 + value
20.38	Live wounded birds in possession	B Misdemeanor	\$200.00 + value
20.40	Receive, possess, give to another untagged birds	B Misdemeanor	\$200.00 + value

Subpart E: TRANSPORTATION WITHIN THE US

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
20.41	Transport birds taken in violation of Subpart C	B Misdemeanor	\$200.00 + value
20.42	Transportation of untagged birds of another	B Misdemeanor	\$150.00 + value
20.43	Transport migratory game birds with species ID removed	B Misdemeanor	\$150.00 + value
20.44	Transport unmarked/improperly marked pkg. containing migratory game birds via postal service or common carrier	B Misdemeanor	\$150.00 per pkg

Subpart F: EXPORTATION

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
20.51	Export birds taken in violation of Subpart C	B Misdemeanor	\$200.00 + value
20.52	Export birds with species ID removed	B Misdemeanor	\$150.00 + value
20.53	Export unmarked or improperly marked packages containing migratory birds as required	B Misdemeanor	\$150.00 per pkg

Subpart G: IMPORTATIONS

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
20.61	Import migratory game birds in excess of legal limit	B Misdemeanor	\$200.00 + value
20.62	Import migratory game birds belonging to another	B Misdemeanor	\$200.00 + value

20.63	Import migratory game birds with species ID removed	B Misdemeanor	\$150.00 + value
20.64	Import, possess, transport birds killed in foreign country without required export permits	B Misdemeanor	\$200.00 + value
20.65	Import birds not drawn or dressed as required	B Misdemeanor	\$150.00 + value
20.66	Import unmarked or improperly marked packages containing migratory birds as required	B Misdemeanor	\$200.00 per pkg

Subpart H: FEDERAL, STATE AND FOREIGN LAW

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
20.71	Take, possess, transport, or export migratory birds, their parts, nests, or eggs in violation of any other federal law or regulation	B Misdemeanor	\$250.00 + value
20.72	Take, possess, transport, or export migratory birds, their parts, nests, or eggs in violation of any other state law or regulation	B Misdemeanor	\$250.00 + value
20.73	Import, possess, or transport, migratory birds, their parts, nests, or eggs if taken, bought, sold, transported, possessed, or exported contrary to any law or regulation of any foreign country, state, or province thereof	B Misdemeanor	\$250.00 + value

Subpart I: MIGRATORY BIRD PRESERVATION FACILITIES

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
20.81	Commercial facility with untagged mig. birds of another as required under 20.36	B Misdemeanor	\$200.00 + value
20.82	Violation of record keeping requirement	B Misdemeanor	\$200.00
20.83	Failure to permit premise inspection	B Misdemeanor	\$500.00

Subpart J: FEATHERS OR SKINS

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
20.91(a)	Purchase, sell, barter, or offer thereof for millinery or ornamental use, the feathers of migratory game birds	A Misdemeanor	\$500.00

20.91(b)	Purchase, sell, barter, or the offer thereof, mounted specimens taken by hunting	A Misdemeanor	\$500.00 + value/ MA
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16 USC 718

Migratory Bird Hunting Stamp Act

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
16 USC 718a	Take/hunt migratory waterfowl without a federal waterfowl hunting stamp	B Misdemeanor	\$250.00 + value
16 USC 718b	Hunting migratory waterfowl with an invalid (unsigned) federal waterfowl stamp	B Misdemeanor	\$100.00 + value
16 USC 718e(a)	Loan or transfer valid migratory stamp to another person, or use stamp validated by another	B Misdemeanor	\$300.00
16 USC 718e(b)	Alter, mutilate, imitate, or counterfeit migratory waterfowl stamp	B Misdemeanor	\$500.00/MA

50 CFR 21: Migratory Bird Permit Violations

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
21.2 thru 21.27	Migratory bird permit violations (general)	B Misdemeanor	\$250.00 + value
21.28	Violation of falconry permit requirements (general)	B Misdemeanor	\$250.00 + value
21.29	Violation of falconry standards (general)	B Misdemeanor	\$250.00
21.28 thru 21.29	Take, possess, transport, sell, purchase, barter, or transfer eagle or other raptor for falconry in violation of regulations, or without a permit	B Misdemeanor	\$500.00 + value
21.29(j)(5)	Retain/exchange feathers for other than imping purposes	B Misdemeanor	\$150.00 + \$50.00/feather
21.30	General violation of raptor propagation permit	B Misdemeanor	\$250.00 +100/bird

21.30(a)	Take, possess, transport, sell, purchase, barter or transfer any raptor, raptor egg, or raptor semen, for propagation without authorization	B Misdemeanor	\$350.00 + \$100 /bird or \$100/egg or \$100/semen sample
21.30(d)(7)	Unauthorized hybridization of raptors	B Misdemeanor	\$500.00 +
21.41 thru 21.43	Violation of depredating bird permit/regulations	B Misdemeanor	\$300.00 + value

16 USC 668

Bald and Golden Eagle Protection Act

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
16 USC 668a	Take, possess, transport, sell, purchase, barter, trade, import, export any bald or golden eagle or parts, nests, or eggs thereof	A Misdemeanor	\$2,500.00/M A+ value

50 CFR 22: Regulations Pertaining to Bald and Golden Eagle Permits

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
22.11	Take, possess, or transport a bald or golden eagle or parts, nest or eggs thereof without authorization	B Misdemeanor	\$1,000.00 + value
22.12(a)	Sell, purchase, trade, barter, export, import, or offer thereof any bald or golden eagle or parts, nest or eggs thereof without authorization	B Misdemeanor	\$1,000.00 + value
22.12(b)	Transport into or out of the US any live bald or golden eagle or any live egg of those species	B Misdemeanor	\$500.00 + value
22.21 thru 22.32	Violation of eagle permit requirements	B Misdemeanor	\$250.00 + value

16 USC 1531-1543**Endangered Species Act - Convention on International Trade (CITES)**

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
16 USC 1538(c) thru 1538(g)	Violations of Endangered Species Convention (CITES)	A Misdemeanor	\$1,000.00 + value

50 CFR 23: Regulations pertaining to import/export of protected wildlife & plants

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
23.11(a) thru 23.11(e)	Unlawfully import, export, re-export, or possess unlawfully imported, exported, or re-exported: Appendix I species Appendix II species Appendix III species	A Misdemeanor	\$1,000.00 + value \$500.00 + value \$250.00 + value

50 CFR 24: Regulations pertaining to the import/export of plants

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
24.11	Import, export, re-export plants at non-designated port of entry	A Misdemeanor	\$250.00 + value

16 USC 668dd(c)**National Wildlife Refuge Act - Prohibited Acts**

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
16 USC 668dd(c)	No person shall disturb, injure, cut, burn, remove, destroy, or possess any real or personal property of the United States, or take or possess any fish, bird, mammal, or other wild vertebrate or invertebrate animal or part or nest or egg thereof, or enter, use, or otherwise occupy any such area for any purpose without a permit or authorization	A Misdemeanor B Misdemeanor	(f)(1) Knowing 500.00 + value (f)(2) Other \$250.00 + value

16 USC 668dd and 16 USC 721-731

National Wildlife Refuge

Administrative Act 50 CFR 25: Administrative Provisions

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
25.21	Enter a closed portion of National Wildlife Refuge	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$150.00/ MA
25.22	Failure to immediately turn in lost articles/money	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00/ MA
25.42	Failure to display permit/license/identification upon request	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00/ MA
25.55	Failure to obtain valid admission permit, when required	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$150.00/ MA
25.56	At entrance fee areas; failure to pay entrance fee, transfer of entrance permit, failure to display valid permit upon request, failure to comply with other entrance fee provisions	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$50.00/M A
25.71	Failure to comply with safety requirements	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	100.00/M A

25.72	Failure to report accidents	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$150.00/ MA
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50 CFR 26: Regulations Pertaining to Public Entry & Use

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
26	All other public entry and use regulations	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$150.00
26.21(a)	Trespass on National Wildlife Refuge (NWR)	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$200.00/MA
26.21(b)	Permit unconfined domestic animal to enter a NWR	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$200.00 + \$50.00 per animal per day
26.22(a)	Failure to comply with any special regulations and any other official notifications described in section 25.31	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00/MA
26.22(b)	Failure to abide by terms/conditions of entry permit	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$200.00/MA

26.36	Conduct public assembly/demonstration without a permit/violation of permit provisions	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$150.00/MA
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50 CFR 27: Prohibited Acts

Subpart B – TAKING

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
27.21	Take any refuge animal or plant without authorization	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	(f)(1) Knowing \$500.00 + value (f)(2) Other \$250.00 + value

Subpart C - DISTURBING VIOLATIONS: VEHICLES

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
27.31	Travel on other than a designated route of travel	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$200.00/MA
27.31(a)	Operate a vehicle in violation of state law	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00
27.31(b)	Operate a vehicle under the influence of drugs or intoxicating beverage	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$300.00/MA

27.31(c)	Operate a vehicle carelessly or heedlessly	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$150.00/MA
27.31(d)	Exceed 25 mph or posted speed limit	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$75.00 1- 10mph over \$125.00 11- 20mph over \$225.00 21- 30mph over \$325.00 31- 40mph over
27.31(e)	Operate vehicle without a muffler/spark arrester	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$75.00
27.31(f)	Operate vehicle without license plate/registration	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00
27.31(g)	Operate vehicle without a driver's license	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00, and \$250 for driving while revoked/ suspended
27.31(h)	Block road access for other vehicles/improper parking	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00

27.31(l)	Failure to obey orders of traffic control officer	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$150.00/MA
27.31(j)	Operate over-sized/over-weight vehicle	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$150.00
27.31(k)	Moving of vehicle involved in accident	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$150.00
27.31(l)	Operate a vehicle without proper headlights, tail-lights, or brake lights	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$75.00
27.31(m)	Violation of other established special vehicle requirements	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$75.00
27.32(a)	Unauthorized use of a boat	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$200.00/MA
27.32(b)	Operate boat in violation of either Coast Guard or State laws	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00

27.32(b)(2)	Operate boat in reckless/negligent manner	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$150.00/MA negligent \$250.00/MA reckless
27.32(b)(3)	Operate boat under influence of an intoxicant	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$500.00/MA
27.32(b)(4)	Interfere with operation of other boats	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$150.00/MA
27.32(b)(5)	Operate boat without proper marine head	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$200.00/MA
27.32(b)(6)	Operate a sailboat without required lights	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$75.00
27.32(b)(7)	Leave boat unattended for 72 hrs	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00
27.32(b)(8)	Unauthorized use of government boat dock	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00

27.33	Unauthorized waterskiing on NWR	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$200.00/MA
27.34	Unauthorized operation of aircraft on/over NWR	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$250.00/MA

Subpart D DISTURBING VIOLATIONS: WEAPONS

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
27.41	Carry, possess or discharge a firearm/fireworks/explosive	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$250.00/MA
27.42	Firearms; other violations	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$250.00/MA
27.43	Unauthorized use/possession of weapons other than firearms	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$250.00/MA

Subpart E - DISTURBING VIOLATIONS: AGAINST PLANTS AND ANIMALS

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
27.51	Disturb, injure, damage plants/animals on NWR	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$200.00/MA + value

27.52	Introduction of plants/animals on NWR	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$200.00/MA + \$50.00/item
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Subpart F - DISTURBING VIOLATIONS: AGAINST NON-WILDLIFE PROPERTY

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
27.61	Destruction or removal of property from NWR	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$250.00/MA
27.62	Search for or remove objects of antiquity	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$500.00/MA
27.63	Unauthorized search for valued objects; no permit	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$250.00/MA
27.64	Unauthorized prospecting/mining on a NWR	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$500.00/MA
27.65	Tamper with vehicles or equipment	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$250.00/MA

Subpart G - DISTURBING VIOLATIONS: LIGHT AND SOUND EQUIPMENT

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
27.71	Take or film motion pictures for commercial use	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$500.00/MA
27.72	Cause unreasonable disturbances w/ audio equipment	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$200.00/MA
27.73	Use of artificial light to spot/locate/take wildlife	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$250.00/MA

Subpart H - DISTURBING VIOLATIONS: PERSONAL CONDUCT

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
27.81	Enter NWR under the influence of alcohol	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$250.00/MA
27.82(b)(1)	Deliver controlled substance	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$500.00/MA
27.82(b)(2)	Possess controlled substance on a NWR	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$250.00/MA

27.82(b)(3)	Under influence of a controlled substance	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$250.00/MA
27.83	Indecency or disorderly conduct	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00/MA indecency \$250.00/MA disorderly
27.84	Interference with persons engaging in authorized activity	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$500.00/MA
27.85	Gambling on NWR	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00/MA
27.86	Begging or soliciting	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00/MA

Subpart I - OTHER DISTURBING VIOLATIONS

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
27.91	Conducting field trials (without/in violation of permit)	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$150.00/MA

27.92	Construct, install, occupy private structure	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$250.00/MA
27.93	Abandon private property	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$300.00/MA
27.94	Litter on a NWR	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00/MA
27.94	Dumping refuse or waste	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$500.00/MA
27.94	Depositing environmental contaminants	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$1,000.00/MA A
27.95(a)	Setting unauthorized fire	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$500.00/MA
27.95(a)	Setting unauthorized campfire	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$75.00

27.95(b)	Leaving fire unattended	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$175.00/MA
27.95(c)	Throw burning cigarette/match/etc. where it may start a fire	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$200.00
27.95(d)	Smoking violation	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00
27.96	Unauthorized advertising	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00
27.97	Conduct unauthorized private commercial operation	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$250.00/MA

50 CFR 31: Regulations pertaining to Commercial Fishing & Trapping

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
31.13	Take commercial fishery resource without permit	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$250.00 /MA+ value

31.16	Violation of federal trapping permit regulations, state trapping laws, or other special trapping laws, or special trapping regulations	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$150.00/M A + value
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50 CFR 32: Regulations pertaining to Hunting

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
32.2(a)	Hunt without a State license	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$250.00/MA + value
32.2(b)	Hunt without a migratory waterfowl stamp	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$250.00/MA + value
32.2(c)	Hunt in violation of federal law	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$150.00/MA + value
32.2(d)	Hunt in violation of state law	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$150.00/MA + value
32.2(e)	Hunt in violation of special access requirements	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$150.00/MA + value

32.2(f)	Violation of refuge-specific hunting regulations	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$150.00/MA + value
32.2(g)	Bow hunt with any drug on a arrow	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$500.00/MA + value
32.2(h)	Distribution of bait and hunting over bait on NWR	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$500.00/MA + value
32.2(i)	Use of nails, wire, screws or bolts to attach a tree stand to a tree, or hunt from tree into which a metal object has been driven	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$150.00
32.2(j)	Use or possession of alcohol while hunting	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$200.00/MA
32.2(k)	Use or possession of lead shot while hunting with shotgun or muzzle-loader on Waterfowl Production Areas, or other designated areas	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00 + value +\$20.00 per lead shell + forfeit lead shells

50 CFR 32.5: Regulations pertaining to Fishing

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
32.5(a)	Fish without a state license	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00 + value
32.5(b)	Noncompliance with applicable federal law	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00 + value
32.5(c)	Violation of State fishing laws/regulations	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00 + value
32.5(d)	Non-compliance with terms/conditions authorizing access and use of the wildlife refuge	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00 + value
32.5(e)	Violations of refuge-specific fishing regulations	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00 + value

50 CFR 70: Regulations pertaining to National Fish Hatcheries

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
70.2	Administrative provisions as adopted from Part 25	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	As noted in Part 25
70.4(a)	Prohibited Acts as adopted in Part 27	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	As noted in Part 27
70.4(b)	Unauthorized taking, or attempt to take fish, amphibians, or other aquatic animals	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$200.00/MA + value
70.4(c)	Unauthorized take of any animal	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$200.00/MA + value
70.4(d)	Disturbing spawning fish	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$200.00/MA
70.6	Public Entry & Use as adopted from Part 26	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	As noted in Part 26

50 CFR 71: Regulations pertaining to Hunting & Fishing on National Fish Hatcheries

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
71.2(a)	Hunt without a State license	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$250.00/MA + value
71.2(b) thru 71.2(f)	Noncompliance with federal or state law, regulations, special notices (Hunting)	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$150.00/MA + value
71.12(a)	Fish without a State license	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00/MA + value
71.12(b) thru 71.12(e)	Noncompliance with other federal or state law, regulations, special notices (Fishing)	A Misdemeanor – Knowing B Misdemeanor – Other failures to comply	\$100.00/MA + value

16 USC 470aa et seq.**Archaeological Resources Protection Act of 1979**

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
16 USC 470ee(a)	Knowingly excavate, remove, damage, alter, deface or the attempt thereof, any archaeological resource on public or Indian lands without a permit or exemption...	A Misdemeanor	\$500.00 /MA+ value + restitution
16 USC 470ee(b)	Knowingly sell, purchase, exchange, transport, receive, or offer thereof, any archaeological resource if such resource was excavated or removed from Public or Indian lands in violation of 16 USC 470ee(a)	A Misdemeanor	\$1,000.00 /MA+ value + restitution

	or any provision, rule, regulation, ordinance or permit in effect under any other Federal law..		
16 USC 470ee(c)	Knowingly sell, purchase, exchange, transport, receive, or offer thereof, any archaeological resource if such resource was excavated or removed from Public or Indian lands in violation of 16 USC 470ee(a) or any provision, rule, regulation, ordinance or permit in effect under any other State law...	A Misdemeanor	\$1,000.00/ MA + value + restitution
16 USC 470ee(d)	Counsel, procure, solicit, or employ any other person to violate any prohibition.	A Misdemeanor	\$1,000.00/ MA + value + restitution

18 USC 13

Assimilative Crime Act

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
18 USC 13	Violation of state statutes on land administered by the FWS	State classification	\$300.00/MA

18 USC 5201

Recreational Hunting Safety Act

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
16 USC 5201	Obstruction of a lawful hunt	Civil Penalty; Does not preempt other criminal or state penalties	\$500.00/MA

16 USC 5301 - 5306**Rhinoceros and Tiger Conservation Act of 1998**

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
16 USC 5305(a)	Sale, import or export of any product, item or substance intended for human consumption or application containing or labeled or advertised as containing any substance derived from any species of rhinoceros or tiger	B Misdemeanor	\$250.00/MA + value

16 USC 4201-4245**African Elephant Conservation Act**

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
16 USC 4223	Import or export raw or worked ivory contrary to the provisions of the act	A Misdemeanor	\$1,000.00/M A + value

7 USC 136**Federal Insecticide, Fungicide and Rodenticide Act (FIFRA)**

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
7 USC 136j(a)(2)(g)	Use of any registered pesticide in a manner inconsistent with its labeling	A Misdemeanor	\$1,000.00/M A + value

NOTE: Due to increased liability and potential severity for environmental degradation posed by commercial and organized activities, collateral amounts for violations listed herein shall be doubled for corporations, businesses, partnerships, hunt clubs, and other organizations committing such violations (18 USC 3571c - Fines for Organizations).

Value = the current established replacement value of wildlife/items listed in Appendix A (that were taken or otherwise related to the violation committed).

Item = per specimen, part, product

APPENDIX A
WILDLIFE/PLANT/OTHER VALUATION
TABLE

Note: For purposes of this valuation table, certain terms used are defined as follows:

- Whole/Trophy:** The entire carcass of an animal, or any part thereof (including meat) that is reduced to possession by anyone, or transferred to another.
- Whole/Skin:** The entire carcass of an animal, or any portion of the hide or pelt that is retained by anyone, or transferred to another.
- Whole/Mount:** The entire carcass of an animal, or any entire or partial reproduction of the animal that is composed in whole or in part of any wildlife parts.
- Parts/Products:** Any parts of any species of wildlife or plants, or any items whatsoever that are composed partially or entirely from any wildlife or plants.
- Declared Value:** Any value assigned to any fish, wildlife, plants, or parts thereof, or any other item listed in this table, declared on U.S. Customs and/or U.S. Fish and Wildlife Service declaration forms.

(Note: The declared value shall be used to assign value in any instances where it is greater than the amount listed in this valuation table)

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
Big Game Animals	elk/caribou	whole/trophy	\$2,500.00
	moose/bison	whole/trophy	\$5,000.00
	big horn sheep/mountain goat	whole/trophy	\$10,000.00
	deer/pronghorn	whole/trophy	\$2,000.00
	black bear/cougar/wolf	whole/trophy	\$2,500.00
	brown bear	whole/trophy	\$5,000.00
	polar bear	whole/trophy	\$10,000.00
	rhino/hippo buffalo/elephant/ felines (foreign)	whole/trophy	\$10,000.00
	all other African/Asian/South American/European	whole/trophy	\$2,500.00
	all other	whole/trophy	\$1,500.00

	all parts/products	per item	\$250.00 or declared value
	Any animal whose dimensions are such that it could be entered in any trophy registry (Boone & Crockett, Pope & Young, etc.)	per item	\$10,000.00 or declared value
Small Game animals	All whole/trophy	per item	\$100.00
	All parts/products	per item	\$25.00
	All whole/skin	per item	\$100.00
Fur bearing animals	Rodent family	whole/skin	\$50.00
	Canine family (except wolves)	whole/skin	\$200.00
	Raccoons/Ringtails	whole/skin	\$100.00
	Mink/Marten/Fisher/Weasel	whole/skin	\$150.00
	Wolverine	whole/skin	\$1,000.00
	Otter	whole/skin	\$500.00
	Feline family	whole/skin	\$250.00
	All others	whole/skin	\$50.00
	All parts/products	per item	\$50.00 or declared value
Non-game animals	Carnivores	whole/skin parts	\$1,500.00 \$500.00
	Primates	whole	\$2,500.00
	Others	whole	\$300.00
	All parts/products	per item	\$250.00
Migratory game Birds	Swans	whole/mount	\$1,000.00
	Sandhill Cranes	whole/mount	\$200.00
	Geese	whole/mount	\$150.00
	Ducks	whole/mount	\$100.00

	Doves/Pigeons	whole/mount	\$25.00
	All other	whole/mount	\$25.00
	All parts/products	per item	\$50.00 or declared value
Migratory non-game Birds	Eagles	whole/mount parts/products	\$1,500.00 \$250.00/item
	Hawks/Owls	whole/mount parts/products	\$500.00 \$100.00/item
	Song/Wading birds	whole/mount parts/products	\$100.00 \$50.00/item
	All others	whole/mount	\$100.00
	All other parts/products	per item	\$50.00 or declared value
Other game birds	Wild turkey	whole/mount	\$250.00
	Grouse/Prairie chickens	whole/mount	\$150.00
	All other	whole/mount	\$100.00
	All parts/products	per item	\$50.00 or declared value
Parrots	Macaws/Cockatoos	whole/mount	\$1,500.00
	Parrots	whole/mount	\$1,000.00
	All others	whole/mount	\$100.00
	All parts/products	per item	\$50.00 or declared value
Other pet birds	All	whole/mount	\$100.00
	All parts/products	per item	\$50.00

Other animals	All whole/product	per item	\$50.00 or declared value
Endangered/ Threatened wildlife	All	whole/trophy	\$5,000.00
	All	parts/products	\$2,500.00 or declared value
Endangered/ Threatened plants	All		\$1,000.00 or declared value
Marine Mammals	All (except polar bear)	whole/trophy parts/products	\$2,000.00 \$500.00/it em or declared value
Game/Sport Fish	trout/salmon/walleye/bass/pike/catfish/pa nfish/etc.	whole/trophy	\$50.00
Other fish	Paddle/Sturgeon/etc.	whole/trophy	\$1,000.00
	Eggs/Roe	per ounce per container	\$50.00 \$500.00 or declared value
	all other	whole/trophy parts/products	\$100.00 \$25.00/ite m
Non-sport fish	carp/sucker/gar/etc.	whole/trophy parts/products	\$25.00 \$10.00/ite m
Tropical fish	All	per fish	\$25.00 or declared value
Bait fish	All	whole/product	\$10.00/ite m

Amphibians	All whole/product	per item	\$50.00 or declared value
Reptiles	All whole/product	per item	\$50.00 or declared value
Insects	All whole/products	per item	\$50.00 or declared value
Mollusks	All whole/products	per item	\$25.00 or declared value
Corals	All whole/products	per item	\$100.00 or declared value
Trees	All	> 10 yrs. < 10 yrs.	\$1,000.00 \$200.00
Shrubs/Bushes	All	mature/large seedling/small	\$750.0 0 \$150.0 0
Cacti	All	per plant	\$100.0 0
Orchid family	All		\$100.00 or declared value
Other plants	All		\$10.00 or declared value
Archeological Resources	All	per item human remains	\$250.00 \$1,000.00/i tem or declared value

APPENDIX B

WILDLIFE/PROPERTY FORFEITURE ORDER DISTRICT OF IDAHO

Unless otherwise specifically ordered by a United States Court, any fish, wildlife, plants, or property which has been seized under the authority of the following:

Migratory Bird Treaty Act, 16 USC 703-712;

National Wildlife Refuge Systems

Administrative Act, 16 USC 668dd-668ee;

Eagle Protection Act, 16 USC 668-668e;

Endangered Species Act, 16 USC 1531-1542;

Migratory Waterfowl Hunting

Stamp Act, 16 USC 718- 718i; Airborne

Hunting Act, 16 USC 742j-1;

the Marine Mammal

Protection Act, 16 USC 1361-

1407; Tariff Classification Act,

19 USC

1202;

Lacey Act, 18 USC 42;

Lacey Act Amendments, 16 USC 3371-3378;

American Antiquities Act, 16 USC 433;

African Elephant Conservation

Act, 16 USC 4201-4245; Archeological

Resources Protection Act, 16 USC 470aa

et seq.; Wild Bird Conservation Act, 16

USC 4901- 4916; and

Rhinoceros and Tiger Conservation Act of 1998, 16 USC 5301 *et seq.*;

where final disposition of the case has been made by either payment of a forfeiture of collateral or a judgement by the Court on behalf of the government and where so authorized by statute, such wildlife or property shall be forfeited to the

U.S. government and disposed of by the U.S. Fish & Wildlife Service in the manner prescribed by Title 50, Code of Federal Regulations, Part 12.

VI
BUREAU OF LAND MANAGEMENT
TITLE 43, CODE OF FEDERAL REGULATIONS
Restricted or Prohibited Acts

Unauthorized Use, Right of Way/Use, Leases, and Permits

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2808.10(a)	Using, occupying, or developing the public lands or their resources without authorization	A Misdemeanor	\$250.00/MA
2920.1-2(e)	Violating regulations (use, occupancy, or development of the public lands) without authorization	A Misdemeanor	\$200.00/MA

Special Recreation Use Authorizations or Permits

The following are prohibited:

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2932.57(a)(1)	Failure to obtain a Special Recreation Permit	A or B Misdemeanor	MA Commercial) \$250.00/MA (Non-commercial)
2932.57(a)(1)	Failure to pay the fees required for a Special Recreation Permit	A or B Misdemeanor	\$100.00/MA (First Offense) \$500.00/MA (Second Offense Commercial) \$200.00/MA (Second Offense Non- commercial)
2932.57(a)(2)	Violating the stipulations or conditions of a permit	A Misdemeanor	\$250.00/MA (Commercial) \$100.00/MA (Non-commercial)

2932.57(a)(3)	Knowingly participating in an event or activity subject to a permit, if BLM has not issued a permit	A Misdemeanor	\$150.00/MA (commercial) \$100.00/MA (Non-commercial)
2932.57(a)(4)	Failing to post a copy of any commercial or competitive event where all participants may read	A Misdemeanor	\$100.00
2932.57(a)(5)	Failing to show a copy of a special recreation permit upon request by a BLM employee or participant in the activity	A Misdemeanor	\$100.00
2932.57(a)(6)	Obstructing or impeding pedestrians or vehicles, or harassing visitors or other persons with physical contact while engaged in activities covered under a permit or other authorization	A Misdemeanor	\$250.00/MA (permit holder or guest of permit holder) \$100.00/MA (participant)
2932.57(a)(7)	Refusing to leave or disperse when directed to do so by a BLM law enforcement officer or State or local law enforcement officer, whether under permit or not	A Misdemeanor	\$250.00/MA

Recreation Use Permits for Fee Areas

The following are prohibited:

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
2933.33(a)(1)	Failure to obtain a use permit or pay any fees	A or B Misdemeanor	\$50.00 + use fee
2933.33(a)(2)	Violate the stipulation or conditions of a permit	A Misdemeanor	
2933.33(a)(3)	Failure to pay any fee, after occupying a designated-use facility, within the time set by the local BLM office (one-half hour after occupying facility)	A or B Misdemeanor	\$50.00 + use fee
2933.33(a)(4)	Failure to display any required proof of payment of	A or B	\$50.00 +

	fees	Misdemeanor	use fee
2933.33(a)(5)	Willfully and knowingly possessing, using, publishing as true, or selling to another any forged, counterfeited, or altered document used as proof of or exemption from fee payment	A Misdemeanor	\$100.00/M A + use fee
2933.33(a)(6)	Willfully and knowingly using any document used as proof of or exemption from fee payment that BLM issued to or intended another to use	A Misdemeanor	\$100.00/M A + use fee
2933.33(a)(7)	Falsely representing yourself to be a person to whom BLM has issued a document used as proof of or exemption from fee payment	A Misdemeanor	\$100.00/M A + use fee

Petrified Wood - Free Use Regulation

The following are prohibited:

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
3622.4(a)(1)	Removal of petrified wood in excess of 25 pounds plus one piece; not to exceed 250 pounds in one calendar year	A Misdemeanor	\$150.00/M A
3622.4(a)(2)	Use of explosives or power equipment for excavation or removal of petrified wood	A Misdemeanor	\$500.00/M A
3622.4(a)(3)	Selling or bartering petrified wood to dealers	A Misdemeanor	\$200.00/M A
3622.4(a)(4)	Collection of petrified wood shall not create hazards to public health or safety and shall minimize environmental damage	A Misdemeanor	\$250.00/M A

Mining Regulations

The following are prohibited:

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
3715.6(a)(1)	Placing, constructing, maintaining, or using residences or structures not meeting the conditions of occupancy	A Misdemeanor	\$250.00/MA

3715.6(a)(2)	Placing, constructing, maintaining, or using residences or structures not meeting the standards of occupancy	A Misdemeanor	\$250.00/MA
3715.6(b)	Beginning occupancy before approval of a plan of operations	A Misdemeanor	\$250.00/MA
3715.6(c)	Beginning occupancy before consultation with BLM	A Misdemeanor	\$250.00/MA
3715.6(d)	Beginning occupancy without a determination of concurrence	A Misdemeanor	\$250.00/MA
3715.6(e)	Not complying with any order issued	A Misdemeanor	\$250.00/MA
3715.6(f)	Preventing or obstructing passage or transit by force, threats, or intimidation	A Misdemeanor	\$250.00/MA
3715.6(g)	Placing, constructing, or maintaining enclosures, gates, fences, or signs	A Misdemeanor	\$250.00/MA
3715.6(h)	Causing a fire or safety hazard, or creating a public nuisance	A Misdemeanor	\$250.00/MA
3715.6(i)	Not complying with notification to an existing occupancy	A Misdemeanor	\$250.00/MA
3715.6(j)	Conducting activities not reasonably incident to mining	A Misdemeanor	\$250.00/MA
3809.605(a)	Causing unnecessary or undue degradation	A Misdemeanor	\$250.00/MA
3809.605(b)	Beginning any operations before a filed notice or approved plan of operation	A Misdemeanor	\$250.00/MA
3809.605(c)	Conducting any operations outside the scope of notice or plan of operations	A Misdemeanor	\$250.00/MA
3809.605(d)	Beginning operations prior to providing a bond	A Misdemeanor	\$150.00/MA
3809.605(f)	Failing to comply with any performance standards	A Misdemeanor	\$150.00/MA
3809.605(g)	Failing to comply with any enforcement actions	A Misdemeanor	\$150.00/MA
3809.605(h)	Abandoning any operation prior to required reclamation	A Misdemeanor	\$250.00/MA

Grazing Administration

The following are prohibited:

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
4140.1(b)(1)(i)	Allowing livestock to graze without a permit or authorization	B Misdemeanor	\$200.00/MA + \$50.00 per animal per day
4140.1(b)(1)(ii)	In violation of terms and conditions of a permit	B Misdemeanor	\$200.00/MA
4140.1(b)(1)(iii)	In an area or at a different time than that authorized	B Misdemeanor	\$100.00/MA
4140.1(b)(1)(iv)	Failing to comply with requirements: counting, marking, tagging	B Misdemeanor	\$100.00
4140.1(b)(2)	Installing, using, maintaining, modifying, and/or removing range improvements	B Misdemeanor	\$200.00/MA
4140.1(b)(3)	Cutting, burning spraying, destroying, or removing vegetation	B Misdemeanor	\$200.00/MA
4140.1(b)(5)	Molesting, harassing, injuring, poisoning, or causing the death of livestock	B Misdemeanor	\$200.00/MA
4140.1(b)(6)	Littering	B Misdemeanor	\$100.00
4140.1(b)(7)	Interfering with lawful uses or users	B Misdemeanor	\$100.00/MA
4140.1(b)(8)	Knowingly or willfully making false statements	B Misdemeanor	\$250.00/MA
4140.1(b)(9)	Failing to pay any fee required for livestock grazing	B Misdemeanor	\$100.00/MA+ fee
4140.1(b)(10)	Failing to reclaim and repair lands, property, or resources	B Misdemeanor	\$250.00/MA
4140.1(b)(11)	Failing to re-close gate	B Misdemeanor	\$50.00

Wild Horse and Burro Act

The following are prohibited;

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
4770.1(a)	Maliciously injuring or harassing a wild horse or burro	A Misdemeanor	\$300.00/MA
4770.1(a)	Maliciously injuring or harassing a wild horse or burro	A Misdemeanor	\$300.00/MA
4770.1(b)	Removing or attempting to remove a wild horse or burro from public lands		\$250.00/MA
4770.1(c)	Destroying a wild horse or burro	A Misdemeanor	\$500.00/MA
4770.1(d)	Selling or attempting to sell a wild horse or burro or its remains	A Misdemeanor	\$250.00/MA
4770.1(e)	Commercially exploiting a wild horse or burro	A Misdemeanor	\$250.00/MA
4770.1(f)	Treating a wild horse or burro inhumanly	A Misdemeanor	\$250.00/MA
4770.1(g)	Violating a term or condition of a Maintenance and Care Agreement	A Misdemeanor	\$200.00/MA
4770.1(h)	Branding a wild horse or burro	A Misdemeanor	\$250.00/MA
4770.1(i)	Removing or altering a freeze brand	A Misdemeanor	\$250.00/MA
4770.1(j)	Violating an order, term, or condition established by the authorized officer	A Misdemeanor	\$100.00

Free Use (Firewood) Permit

The following are prohibited:

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
5511.4(b)(1)	Obtaining any free use permit through any false, fictitious, or fraudulent statements	A Misdemeanor	\$150.00/MA
5511.4(b)(3)	Violating terms or conditions of a permit	A Misdemeanor	\$150.00/MA
5511.4(b)(4)	Exporting timber from the State in which it was cut	A Misdemeanor	\$500.00/MA
5511.4(b)(5)	Cutting timber for sale, barter, speculation, or use by other than permittee	A Misdemeanor	\$250.00/MA

Forest/Vegetative Products - Contract and Permit

The following are prohibited:

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
5462.2(b)(1)	Cutting, removing, or otherwise damaging timber, tree, or other vegetative resource	A Misdemeanor	\$200.00/MA
5462.2(b)(2)	Cutting any standing tree before marked	A Misdemeanor	\$250.00/MA
5462.2(b)(3)	Removing any timber or vegetative resource without authorization	A Misdemeanor	\$500.00/MA (commercial) \$250.00/MA (Non-commercial)
5462.2(b)(4)	Stamping, marking, or tagging any tree or vegetative resource in a manner similar to the BLM	A Misdemeanor	\$500.00/MA
5462.2(b)(5)	Transporting timber or a vegetative resource without a proper haul ticket	A Misdemeanor	\$250.00/MA (Commercial) \$150.00/MA (Non-commercial)
5462.2(b)(6)	Failing to possess permit or contract	A Misdemeanor	\$500.00/MA (Commercial) \$250.00/MA (Non-commercial)
5462.2(b)(7)	Violating any state or local laws relating to permits, tagging, or transportation of timber, trees, or vegetative resources	A Misdemeanor	\$250.00/MA (Commercial) \$100.00/MA (Non-commercial)
5462.2(b)(8)	Violating provisions of export and substitution	A Misdemeanor	\$500.00/MA
5462.2(b)(9)	Obtaining any contract or permit under false, fictitious, or fraudulent statement	A Misdemeanor	\$300.00/MA

5462.2(b)(10)	Destruction or injury to any timber or vegetative resource under permit	A Misdemeanor	\$175.00/MA
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Wilderness Areas

The following are prohibited:

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
6302.20(a)	Operating a commercial enterprise	A Misdemeanor	\$250.00/MA
6302.20(b)	Building temporary or permanent roads	A Misdemeanor	\$500.00/MA
6302.20(c)	Building aircraft landing strips, heliports, or helispots	A Misdemeanor	\$500.00/MA
6302.20(d)	Using motorized equipment or other forms of mechanical transport	A Misdemeanor	\$500.00/MA (Motorized) \$300.00/MA (Mechanical)
6302.20(e)	Landing aircraft, or dropping/picking up supplies or person	A Misdemeanor	\$500.00/MA
6302.20(f)	Building, installing or erecting structures or installations	A Misdemeanor	\$500.00/MA
6302.20(g)	Cutting trees	A Misdemeanor	\$350.00/MA
6302.20(h)	Entering or using wilderness areas without authorization	A Misdemeanor	\$100.00
6302.20(i)	Engaging or participating in competitive use	A Misdemeanor	\$100.00/MA
6302.20(k)	Violating any regulation, authorization, or order	A Misdemeanor	\$200.00

Research National Areas

The following are prohibited:

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
8223.1(a)	Using, occupying, constructing, or maintaining facilities	A Misdemeanor	\$100.00/MA

8223.1(b)	Using, occupying, constructing, or maintaining facilities in a manner inconsistent with the purpose of the research natural area	A Misdemeanor	\$100.00/MA
8223.1(c)	Scientists or educators using the area in a manner that is destructive or inconsistent with the purpose of the research natural area	A Misdemeanor	\$100.00/MA

Off-Road Vehicles

The following are prohibited:

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
8341.1(b)	Operating an off-road vehicle outside of those areas and trails designated as limited to off-road vehicles	A Misdemeanor	\$200.00/MA
8341.1(c)	Operating an off-road vehicle in those areas and trails closed to off-road vehicle use	A Misdemeanor	\$200.00/MA
8341.1(d)	Operating an off-road vehicle in violation of State laws and regulations relating to use, standards, registration, operation, and inspection	A Misdemeanor	\$75.00
8341.1(e)	Operating an off-road vehicle without a valid State operator=s license where required by the State	A Misdemeanor	\$75.00
8341.1(f)(1)	Operating an off-road vehicle in a reckless, careless, or negligent manner	A Misdemeanor	\$200.00/MA (Reckless/ Negligent) \$150.00/MA (Careless)
8341.1(f)(2)	Operating an off-road vehicle in excess of established speed limits	A Misdemeanor	1-15= \$50.00 15+= \$75.00
8341.1(f)(3)	Operating an off-road vehicle while under the influence of alcohol, narcotics, or dangerous drugs	A Misdemeanor	\$300.00/MA
8341.1(f)(4)	Operating an off-road vehicle in a manner causing, or likely to cause, significant, undue damage to soil, wildlife, wildlife habitat, improvements, cultural, or vegetative resources, or other uses	A Misdemeanor	\$250.00/MA

8341.1(f)(5)	Operating an off-road vehicle during night hours from a half- hour after sunset to a half-hour before sunrise, without lighted headlights and taillights	A Misdemeanor	\$75.00
8341.1(g)	Operating an off-road vehicle failing to yield to pedestrians, saddle horses, pack trains, or animal-drawn vehicles	A Misdemeanor	\$75.00
8343.1(a)	Operating an off-road vehicle unless equipped with brakes in good working condition	A Misdemeanor	\$75.00
8343.1(b)	Operating an off-road vehicle equipped with muffler cutout or bypass, or producing excessive noise	A Misdemeanor	\$75.00
8343.1(c)	Operating an off-road vehicle without a properly installed spark arrester	A Misdemeanor	\$75.00
8343.1(d)(1)	Operating an off-road vehicle during night hours from a half- hour after sunset to a half-hour before sunrise, without headlights	A Misdemeanor	\$75.00
8343.1(d)(2)	Operating an off-road vehicle during night hours from a half- hour after sunset to a half-hour before sunrise, without red taillights	A Misdemeanor	\$75.00

Management Areas - National Scenic Trails and Rivers

The following are prohibited:

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
8351.1-1(a)	Operating a motorized vehicle along a national scenic trail	B Misdemeanor	\$200.00/MA
8351.2-1(c)	Violating terms or conditions of written permission	B Misdemeanor	\$100.00
8351.2-1(e)(1)	Going into or being upon land or water surface where prohibited	B Misdemeanor	\$200.00/MA
8351.2-1(e)(2)	Camping where prohibited	B Misdemeanor	\$75.00
8351.2-1(e)(3)	Hiking where prohibited	B Misdemeanor	\$50.00
8351.2-1(e)(4)	Building, maintaining, attending, or using a fire where prohibited	B Misdemeanor	\$75.00

8351.2-1(e)(5)	Improper disposal of garbage, trash, or human waste	B Misdemeanor	\$200.00/MA
8351.2-1(e)(6)	Disorderly conduct	B Misdemeanor	\$150.00/MA
8351.2-1(e)(7)	Other acts the authorized officer determines are detrimental	B Misdemeanor	\$50.00

Closures

The following is prohibited:

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
8364.1(d)	Failure to comply with a closure or restriction order	A Misdemeanor	\$100.00

Rules of Conduct - All Public Lands

The following are prohibited:

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
8365.1-1(b)(1)	Disposing of any cans, bottles or other nonflammable trash or garbage	A Misdemeanor	\$200.00/MA
8365.1-1(b)(2)	Disposing of flammable trash or garbage	A Misdemeanor	\$200.00/MA
8365.1-1(b)(3)	Draining sewage or petroleum products or dumping refuse or waste other than water from a trailer or other vehicle	A Misdemeanor	\$150.00 grey \$250.00 black/petroleum
8365.1-1(b)(4)	Disposing of any household, commercial or industrial refuse or waste brought as such from private or municipal property	A Misdemeanor	Household \$1000.00/MA Commercial \$1,500/MA
8365.1-1(b)(5)	Polluting or contaminating water supplies or water used for human consumption	A Misdemeanor	\$250.00/MA
8365.1-1(b)(6)	Using a refuse container or disposal facility for any purpose other than that for which it is supplied	A Misdemeanor	\$50.00/MA
8365.1-2(a)	Camping longer than the period of time permitted by the authorized officer	A Misdemeanor	\$100.00/MA Subsequent

			citations \$250.00/MA
8365.1-2(b)	Leaving personal property unattended longer than 10 days, unless otherwise authorized	A Misdemeanor	\$75.00/MA
8365.1-3(a)	While operating a vehicle, exceeding the posted speed limit	A Misdemeanor	\$50.00 1-15mph over \$75.00 16+mph over
8365.1-3(a)	While operating a vehicle, willfully endangering persons or property, or acting in a reckless, careless, or negligent manner	A Misdemeanor	\$250.00/MA (Reckless/ Negligent) \$150.00/MA (Careless)
8365.1-3(b)(1)	Operating a vehicle unless operator and front seat passenger restrained (seatbelt); secondary offense	A Misdemeanor	\$75.00
8365.1-4(a)(1)	Making unreasonable noise	A Misdemeanor	\$75.00
8365.1-4(a)(2)	Creating a hazard or nuisance	A Misdemeanor	\$150.00/MA
8365.1-4(a)(3)	Refusing to disperse when directed to do so by an authorized officer	A Misdemeanor	\$100.00/MA
8365.1-4(a)(4)	Resisting arrest or issuance of a citation by an authorized officer, or interfering with any BLM employee or volunteer	A Misdemeanor	\$250.00/MA
8365.1-4(a)(5)	Assaulting any BLM employee or volunteer	A Misdemeanor	\$500.00/MA
8365.1-4(a)(5)	Committing a battery upon any BLM employee or volunteer	A Misdemeanor	750.00/MA
8365.1-4(a)(6)	Knowingly giving any false or fraudulent report of an emergency situation or crime to any BLM employee or volunteer	A Misdemeanor	\$150.00/MA
8365.1-4(b)(1)	Cultivating, manufacturing, delivering, distributing, or trafficking in a controlled substance	A Misdemeanor	\$500.00/MA
8365.1-4(b)(2)	Possessing a controlled substance	A Misdemeanor	\$500.00/MA

8365.1-5(a)(1)	Willfully defacing, disturbing, removing or destroying any personal property or structures, or any scientific, cultural, archaeological or historic resource, natural object or area	A Misdemeanor	\$500/MA for Arch. \$250.00/MA for other
8365.1-5(a)(2)	Willfully defacing, removing, or destroying plants or their parts, soil, rocks or minerals, or cave resources	A Misdemeanor	\$250.00/MA
8365.1-5(a)(3)	Using explosives or motorized or mechanical devices to aid in collection of specimens	A Misdemeanor	\$250.00/MA
8365.1-5(c)	Collection of renewable or nonrenewable resources without authorization for commercial purposes	A Misdemeanor	\$500.00/MA
8365.1-6	Violating supplementary rules established by the State Director necessary to provide for the protection or persons, property, and the public land and resources	A Misdemeanor	\$150.00/MA

Developed Recreation Sites and Areas

The following are prohibited:

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
8365.2-1(a)	Cleaning fish, game, other food, clothing, or household articles at any outdoor hydrant, pump, faucet or fountain, or restroom water faucet	Infraction	\$50.00
8365.2-1(b)	Depositing human waste except in toilet or sewage facility	Infraction	\$150.00/MA
8365.2-1(c)	Bring an animal, unless the animal is on a leash (6 feet or less), or under control of a person, or otherwise restrained at all times	Infraction	\$50.00
8365.2-2(a)	Operating or using any audio device or other noise producing or motorized equipment that makes unreasonable noise that disturbs other visitors	Infraction	\$75.00
8365.2-2(b)	Operating or using a public address system	Infraction	\$75.00
8365.2-2(c)	Constructing, erecting, or using an antenna or aerial other than on a vehicle	Infraction	\$50.00

8365.2-3(a)	Failure to pay any fees	Infraction	\$50.00 + use fee
8365.2-3(b)	Pitching any tent, parking any trailer, or placing any camping equipment other than in the place designed for it within a designated campsite.	Infraction	\$75.00
8365.2-3(c)	Leaving personal property unattended for more than 24 hours in a day-use area, or 72 hours in other areas	Infraction	\$75.00
8365.2-3(d)	Building any fire except in a stove, grill, fireplace, or ring provided	Infraction	\$75.00
8365.2-3(e)	Entering or remaining in campgrounds closed during established night periods; except as occupant or visiting a person camping (10:00 p.m. through 6:00 a.m.)	Infraction	\$75.00
8365.2-3(f)	Entering or using a site or portion of a site closed to use	Infraction	\$75.00/MA
8365.2-3(g)	Occupying a site with more people than permitted within the developed campsite	Infraction	\$75.00
8365.2-3(h)	Moving any table, stove, barrier, litter receptacle, or other campground equipment	Infraction	\$50.00
8365.2-4	Operating a motor vehicle except on roads or places provided for this purpose	Infraction	\$75.00
8365.2-5(a)	Discharging or using firearms or other weapons	Infraction	\$250.00/MA
8365.2-5(a)	Discharging or using fireworks	Infraction	\$200.00/MA
8365.2-5(b)	Bringing an animal, except a seeing eye or hearing ear dog, to a swimming area	Infraction	\$50.00

Wildfire Prevention

The following are prohibited:

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
9212.1(a)	Causing a fire, other than a campfire or industrial flaring of gas, to be ignited by any source	A Misdemeanor	\$250.00/MA
9212.1(b)	Firing a tracer or incendiary device	A Misdemeanor	\$250.00/MA
9212.1(c)	Burning timber, tree, slash, brush, tundra, or grass except in campfires without authorization	A Misdemeanor	\$250.00/MA
9212.1(d)	Leaving a fire without extinguishing it	A Misdemeanor	\$175.00/MA
9212.1(e)	Building, attending, maintaining, or using a campfire without removing all flammable material from around the campfire	A Misdemeanor	\$100.00/MA
9212.1(f)	Resisting or interfering with the efforts of firefighter(s) to extinguish a fire	A Misdemeanor	\$500.00/MA
9212.1(g)	Entering an area which is closed by a fire prevention order	A Misdemeanor	\$500.00/MA
9212.1(h)	Performing any act restricted by a fire prevention order	A Misdemeanor	\$500.00/MA

Unauthorized Enclosures or Occupancy

The following is prohibited:

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
9269.3-4(a)(1)	Any enclosure of public lands made or maintained by any party, association, or corporation	A Misdemeanor	\$200.00/MA A

Range Management

The following are prohibited:

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
9264.1(a)	Allowing livestock or other privately owned animals to graze or to be driven across land without a permit or authorization	A Misdemeanor	\$200.00/MA + \$50.00 per animal per day

9264.1(b)	Installing, using, maintaining, modifying and/or removing range improvements	A Misdemeanor	\$100.00/MA
9264.1(c)	Cutting, burning, spraying, destroying, or removing vegetation	A Misdemeanor	\$100.00/MA
9264.1(d)	Damaging or removing United States property without authorization	A Misdemeanor	\$100.00/MA
9264.1(e)	Molesting livestock	A Misdemeanor	\$100.00/MA
9264.1(f)	Littering	A Misdemeanor	\$100.00/MA
9264.1(g)	Violating any provision of 43CFR Part 4700 concerning the protection and management of wild horses and burros	A Misdemeanor	\$250.00/MA
9264.1(h)	Violating any Federal or State laws or regulations concerning conservation or protection of natural and cultural resources; including fish and wildlife	A Misdemeanor	\$100.00 /MA for fish/small game 250/MA for big game
9264.1(i)	Interfering with lawful uses or users	A Misdemeanor	\$100.00/MA
9264.1(j)	Knowingly or willfully making false statement or representation in base property certification or grazing application	A Misdemeanor	\$250.00/MA

Wild Horse and Burro Management

The following are prohibited:

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
9264.7(a)(1)	Willfully removing or attempting to remove a wild horse or burro	A Misdemeanor	\$250.00/MA
9264.7(a)(2)	Converting a wild horse or burro to private use without authorization	A Misdemeanor	\$250.00/MA
9264.7(a)(3)	Maliciously causing the death or harassment of any wild horse or burro	A Misdemeanor	\$500.00/MA

9264.7(a)(4)	Processing, or permitting to be processed, into commercial products the remains of a wild horse or burro	A Misdemeanor	\$250.00/MA
9264.7(a)(5)	Selling a wild horse or burro, or the remains	A Misdemeanor	\$250.00/MA
9264.7(a)(6)	Using a wild horse or burro for commercial exploitation	A Misdemeanor	\$250.00/MA
9264.7(a)(7)	Causing or being responsible for the inhumane treatment of a wild horse or burro	A Misdemeanor	\$250.00/MA
9264.7(a)(8)	Using a wild horse or burro for bucking stock	A Misdemeanor	\$250.00/MA
9264.7(a)(9)	Failure to produce for inspection animals assigned for private maintenance under a cooperative agreement	A Misdemeanor	\$100.00
9264.7(a)(10)	Failure to notify of the death of a wild horse or burro within 7 days of death	A Misdemeanor	\$100.00
9264.7(a)(11)	Removing or attempting to remove, alter, or destroy any official mark identifying a wild horse or burro	A Misdemeanor	\$250.00/MA
9264.7(a)(12)	Abandoning a wild horse or burro without making arrangements for food, water, and shelter	A Misdemeanor	\$250.00/MA
9264.7(a)(13)	Failure to diligently pursue, in an attempt to capture, an escaped wild horse or burro	A Misdemeanor	\$100.00
9264.7(a)(14)	Accepting for slaughter or destruction a wild horse or burro not accompanied by a certificate of title that the animal has been transferred	A Misdemeanor	\$500.00/MA
9264.7(a)(15)	After acceptance of a wild horse or burro for slaughter or destruction, failure to retain for one year the certificate or title	A Misdemeanor	\$100.00

Miscellaneous Rules of Conduct

The following are prohibited:

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
9268.3(a)(2)(ii)	Operating an off-road vehicle on those areas and trails designated as limited in violation of the terms	A Misdemeanor	\$200.00/MA

	and conditions of the designation order		
9268.3(a)(2)(iii)	Operating an off-road vehicle on those areas and trails closed to off-road vehicle use	A Misdemeanor	\$200.00/MA
9268.3(a)(2)(iv)	Operating an off-road vehicle in violation of State laws and regulations relating to use, standards, registration, operation, and inspection of off-road vehicles	A Misdemeanor	\$75.00
9268.3(a)(2)(v)	Operating an off-road vehicle without a valid State operator=s license	A Misdemeanor	\$75.00
9268.3(a)(2)(vii)(A)	Operating an off-road vehicle in a reckless, careless, or negligent manner	A Misdemeanor	\$200.00/MA (Reckless/ Negligent) 150.00/MA (Careless)
9268.3(a)(2)(vii)(B)	Operating an off-road vehicle in excess of established speed limit	A Misdemeanor	1-15=\$50.00 15+=\$75.00
9268.3(a)(2)(vii)(C)	Operating an off-road vehicle while under the influence of alcohol, narcotics, or dangerous drugs	A Misdemeanor	\$300.00/MA
9268.3(a)(2)(vii)(D)	Operating an off-road vehicle in a manner causing or likely to cause significant, undue damage to or disturbance of the soil, wildlife, wildlife habitat, improvements, cultural or vegetative resources, or other authorized uses	A Misdemeanor	\$250.00/MA
9268.3(a)(2)(vii)(E)	Operating an off-road vehicle during night hours from a half- hour after sunset to a half-hour before sunrise, without lighted headlights and taillights	A Misdemeanor	\$75.00
9268.3(a)(2)(viii)	Operating an off-road vehicle and failing to yield the right-of- way to pedestrians, saddle horses, pack trains, or animal-drawn vehicles	A Misdemeanor	\$75.00
9268.3(a)(3)(i)	Operating an off-road vehicle unless equipped with brakes in good working order	A Misdemeanor	\$75.00

9268.3(a)(3)(ii)	Operating an off-road vehicle equipped with a muffler cutout, bypass, or similar device, or producing excessive noise	A Misdemeanor	\$75.00
9268.3(a)(3)(iii)	Operating an off-road vehicle without a properly installed spark arrester	A Misdemeanor	\$75.00
9268.3(a)(3)(iv)(A)	Operating an off-road vehicle during night hours from a half- hour after sunset to a half-hour before sunrise, without headlights	A Misdemeanor	\$75.00
9268.3(a)(3)(iv)(B)	Operating an off-road vehicle during night hours from a half- hour after sunset to a half-hour before sunrise, without taillights	A Misdemeanor	\$75.00

The following are prohibited in developed sites and areas:

9268.3(c)(1)(i)	Intentionally or wantonly destroying, defacing, or removing a natural feature or plant	A Misdemeanor	\$250.00/MA
9268.3(c)(1)(ii)	Intentionally or wantonly destroying, injuring, defacing, removing, or disturbing in any manner any public building, sign, equipment, marker, or other structure or property	A Misdemeanor	\$250.00/MA

The following are prohibited:

9268.3(c)(2)(i)	Intentionally or wantonly destroying, defacing, injuring, removing, or disturbing any in any manner any public building, sign, equipment, marker, or other structure or property	A Misdemeanor	\$250.00/MA
9268.3(c)(2)(ii)	Harvesting or removing any vegetative or mineral resources or object of antiquity, historic, or scientific interest	A Misdemeanor	\$500.00/MA
9268.3(c)(2)(iii)	Appropriating, mutilating, defacing, or destroying any natural feature, object of natural beauty, antiquity, or other public or private property	A Misdemeanor	\$250.00/MA
9268.3(c)(2)(iv)	Digging, removing, or destroying any tree or shrub	A Misdemeanor	\$200.00/MA
9268.3(c)(2)(v)	Gathering or collecting renewable or nonrenewable resources for the purpose of sale or barter without	A Misdemeanor	\$500.00/MA

	authorization		
9268.3(e)(2)(iii)	Violating provisions of the Sikes Act of 1974	A Misdemeanor	\$100.00

VIOLATIONS OF UNITED STATES CODE

The following are prohibited:

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
16 U.S.C. 4306(a)(1)	Knowingly destroying, disturbing, defacing, marring, altering, removing, or harming any significant cave or altering the free movement of any animal or plant life into or out of a significant cave	A Misdemeanor	\$250.00/MA
16 U.S.C. 4306(a)(1)	Possessing, consuming, selling, bartering, exchanging, or offering for sale, barter, or exchange, any cave resource from a significant cave	A Misdemeanor	\$500.00/MA
16 U.S.C. 4306(a)(1)	Concealing, procuring, soliciting, or employing any person to violate the provisions of the Federal Cave Resources Act of 1988	A Misdemeanor	\$250.00/MA
18 U.S.C. 641	Theft of government property; under \$1,000.00	A Misdemeanor	\$250.00/MA
18 U.S.C. 1361	Destruction of government property; under \$100.00	A Misdemeanor	\$250.00/MA
18 U.S.C. 1856	Leaving fire without totally extinguishing	A Misdemeanor	\$175.00/MA
18 U.S.C. 1857	Knowingly and willfully breaking, opening, or destroying any gate, fence, hedge, or wall	A Misdemeanor	\$50.00 open \$75.00 damage
18 U.S.C. 1858	Willfully destroying, defacing, changing, or removing any government survey markers or monuments	A Misdemeanor	\$250.00/MA

VII
U. S. CORPS OF ENGINEERS, DEPARTMENT OF THE ARMY
TITLE 36, CODE OF FEDERAL
REGULATIONS
Restricted or Prohibited Acts

Section	Offense	Bail
327.1(d)	Discriminatory practices prohibited	\$250.00/MA

Vehicles

Section	Offense	Bail
327.2(b)	Parking in violation of posted restrictions	\$100.00/MA
327.2(b)	Parking in violation of posted restrictions and endangering project feature	\$100.00/MA
327.2(b)	Parking in manner that impedes normal or emergency traffic movement, or that creates a safety hazard	\$100.00/MA
327.2(c)	Operations off roadways	\$100.00/MA
327.2(d)	Operations not in accordance with posted restrictions	\$75.00/MA
327.2(e)	Careless, negligent or reckless operation	\$150.00/MA careless \$250.00/MA reckless
327.2(f)	Operation for reason other than ingress or egress	\$75.00/MA
327.2(g)	Operation without proper and effective muffler	\$75.00/MA

Vessels

Section	Offense	Bail
327.3(b)	Placement or operation for fee or profit without permit	\$250.00/MA
327.3(c)	Operating in prohibited or restricted area	\$100.00/MA
327.3(d)	Careless, negligent or reckless operation	\$150.00/MA careless \$250.00/MA reckless

327.3(e)	Safety equipment not in compliance	\$75.00/MA
327.3(f)	Use of habitation or residence	\$100.00/MA

Section	Offense	Bail
327.3(g)	Careless, negligent or reckless operation of water ski, parasails, ski-kites, or similar devices	\$150.00/MA careless \$250.00/MA reckless
327.3(h)	Failure to securely moor at approved mooring facilities	\$50.00/MA
327.3(j)	Operation without proper or effective muffler	\$75.00/MA

Aircraft

Section	Offense	Bail
327.4(b)	Operation other than at designated landing area	\$200.00/MA
327.4(c)	Careless, negligent or reckless operation	\$150.00/MA careless \$250.00/MA reckless
327.4(d)	Use of aircraft not in compliance with regulations and standards	\$250.00/MA
327.4(e)	Air delivery without permit	\$200.00/MA
327.4(f)(2)	Seaplane operation contrary to prohibition or restriction	\$250.00/MA
327.4(f)(3)	Seaplane operation contrary to marine rules of the road	\$250.00/MA
327.4(f)(4)	Failure to securely moor at approved mooring facilities	\$100.00/MA
327.4(f)(5)	Commercial seaplane operation without permit	\$500.00/MA
327.4(f)(6)	Seaplane operation between sunset and sunrise	\$100.00/MA

Swimming

Section	Offense	Bail
327.5(a)	Swimming, wading, snorkeling or scuba diving in prohibited area	\$50.00/MA
327.5(b)	Failure to display diving flag	\$50.00/MA

327.5(c)	Diving from trees, bridges or structures	\$50.00/MA
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Picnicking

Section	Offense	Bail
327.6	Picnicking in a prohibited area	\$25.00/MA

Camping

Section	Offense	Bail
327.7(a)	Camping in prohibited area	\$75.00/MA
327.7(b)	Camping in excess of 14 days	\$100.00/MA
327.7(c)	Reserving campsite without permit	\$50.00/MA
327.7(d)	Digging, leveling or any construction without permit	\$75.00/MA digging \$500/MA structure construction
327.7(e)	Occupying reserved campsite without reservation	\$100.00/MA

Hunting, Fishing and Trapping

Section	Offense	Bail
327.8a	Hunting in prohibited area	\$200.00/MA
327.8b	Trapping in prohibited area	\$200.00/MA
327.8c	Fishing in prohibited area	\$100.00/MA

Sanitation

Section	Offense	Bail
327.9(a)	Improper disposal of wastes generated on project	\$100.00/MA
327.9(b)	Improper disposal of household or commercial waste	\$500.00/MA
327.9(c)	Discharge of wastes on project lands or water	\$250.00/MA personal \$500/MA commercial

327.9(d)	Failure to keep camp and picnic site free of litter	\$100.00/MA
327.9(e)	Discharge of waste from vessel into project waters	\$250.00/MA

Fires

Section	Offense	Bail
327.10(a)	Improper transportation or storage of fuel	\$100.00/MA
327.10(b)	Fire not confined to designated facility or left unattended	\$150.00/MA not confined \$250.00/MA unattended
327.10(b)	Unattended or unconfined fire causing wildfire	\$500.00/MA

Section	Offense	Bail
327.10(b)	Burning of materials that produce toxic fumes	\$25.00/MA
327.10(c)	Improper disposal of lighted material	\$100.00/MA

Control of Animals

Section	Offense	Bail
327.11(a)	Improper or insufficient control of animal	\$50.00/MA
327.11(b)	Failure to remove pet waste	\$50.00/MA
327.11(c)	Livestock in recreation area without permit	\$250.00/MA
327.11(d)	Unauthorized livestock on project land	\$250.00/MA+ \$50.00 per animal/per day
327.11(g)	Wild, exotic or aggressive animals	\$150.00/MA

Restrictions on Public Use of Project

327.12(a)	Failure to observe visiting hours or posted restrictions	\$100.00/MA
327.12(a)	Failure to observe closures or restricted areas	\$300.00/MA

327.12(b)	Failure to observe quiet hours	\$50.00/MA
327.12(c)	Disorderly conduct	\$250.00/MA
327.12(d)	Excessive noise	\$75.00/MA
327.12(e)	Possession and/or consumption of alcohol in prohibited area	\$100.00/MA
327.12(f)	Smoking in restricted area	\$100.00/MA

Explosives, Firearms, Other Weapons and Fireworks

Section	Offense	Bail
327.13(a)	Possession of loaded weapons	\$250.00/MA
327.13(b)	Possession of explosives including fireworks	\$100.00/MA possession \$200.00/MA use

Public Property

Section	Offense	Bail
327.14(a)	Destruction, injury, removal or altering public property <\$250.00	\$250.00/MA
327.14(a)	Destruction, injury, removal or altering public property >\$250.00	\$500.00/MA
327.14(b)	Cutting or removal of trees or wood	\$150.00/MA

Section	Offense	Bail
327.14(c)	Gathering wood in prohibited area	\$50.00/MA
327.14(d)	Use of metal detector in prohibited area	\$50.00/MA

Abandonment and Impoundment of Personal Property

Section	Offense	Bail
327.15(a)	Abandonment or unattended personal property	\$75.00/MA
327.15(b)	Personal property placed on federal lands adjacent to private residence or facility for > 24 hours	\$250.00/MA

Lost and Found Articles

Section	Offense	Bail
327.16(a)	Failure to turn in found items	\$75.00/MA

Advertisement

Section	Offense	Bail
327.17	Advertising without permit	\$200.00/MA

Commercial Activities

Section	Offense	Bail
327.18(a)	Engaging or soliciting businesses without permit	\$250.00/MA
327.18(b)	Failure to comply with lease, license or agreement	\$250.00/MA

Permits

Section	Offense	Bail
327.19(a)	Failure to comply with permit term	\$200.00/MA

Unauthorized Structures

Section	Offense	Bail
327.20	Placing or constructing structure without permit	\$250.00/MA

Special Events

327.21(a)	Special event without permit	\$250.00/MA
327.21(b)	Charging event fee without permit	\$250.00/MA

Unauthorized Occupation

Section	Offense	Bail
327.22(a)	Residential use without permit	\$200.00/MA
327.22(b)	Agricultural use without permit	\$200.00/MA +\$50.00 per animal per day

Recreation Use Fees

Section	Offense	Bail
327.23(b)	Failure to pay fee	\$50.00/MA +fee
327.23(c)	Failure to properly display permit or pass	\$25.00/MA
327.23(d)	Fraudulent use of Golden Age or Golden Access Passport	\$100.00/MA

Interference With Government Employees

Section	Offense	Bail
327.24(a)	Interference with force	\$500.00/MA
327.24(b)	Failure to comply lawful order	\$250.00/MA

VIII
FEDERAL PROTECTIVE SERVICE (GSA)
TITLE 41, CODE OF FEDERAL
REGULATIONS
For use at facilities managed by GSA

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
102-74.370	Inspection	C Misdemeanor	\$25.00
102-74.375	Failure to record presence	C Misdemeanor	\$25.00
102-74.380	Preservation of property	C Misdemeanor	\$250.00/MA
102-74.385	Failure to comply with signs and directions	C Misdemeanor	\$50.00
102-74.385	Failure to comply with lawful directions of Federal police officer and other authorized individuals	C Misdemeanor	\$250.00/MA
102-74.390	Disturbances	C Misdemeanor	\$100.00/MA
102-74.395	Gambling	C Misdemeanor	\$100.00/MA
102-74.400(a)	Being under the influence, using or possessing any narcotic drugs, hallucinogens, marijuana, barbiturates, or amphetamines	C Misdemeanor	\$250.00/MA
102-74.400(b)	Operating a motor vehicle on the property while under the influence of alcoholic beverages, narcotic drugs, hallucinogens, marijuana, barbiturates, or amphetamines	C Misdemeanor	\$850.00/MA
102-74.405	Entering or being on Federal property while under the influence of alcoholic beverages	C Misdemeanor	\$100.00/MA
102-74.410	Soliciting, vending and debt collecting	C Misdemeanor	\$200.00/MA
102-74.415(a)	Distribution of free samples of tobacco products in or around Federal buildings	C Misdemeanor	\$250.00/MA
102-74.415(b)	Posting materials (pamphlets, flyers, etc.)	C Misdemeanor	\$25.00
102-74.415(c)	Distributing materials (pamphlets, handbills, or flyers)	C Misdemeanor	\$25.00
102-74.420	Taking photographs in violation of security regulations or Federal Court order	C Misdemeanor	\$250.00/MA
102-74.420(a) & (b)	Taking photographs without permission	C Misdemeanor	\$50.00
102-74.425	Unauthorized dogs or other animals on Federal	C Misdemeanor	\$50.00

	property		
102-74.430(a)	Failure to drive in a careful and safe manner	C Misdemeanor	\$150.00/MA
102-74.430(b)	Failure to comply with signals and directions of Federal police officers or other authorized individuals	C Misdemeanor	\$150.00/MA
102-74.430(c)	Failure to comply with all posted traffic signs	C Misdemeanor	\$75.00
102-74.430(e)	Blocking entrances, driveways, walks, loading platforms or fire hydrants	C Misdemeanor	\$75.00
102-74.430(f)	Parking without a permit, without authorization, in unauthorized location, in reserved area, and/or contrary to direction of posted signs	C Misdemeanor	\$25.00
102-74.435	Carry or possession of explosives	C Misdemeanor	\$250.00/MA
102-74.440	Possession of firearms or other dangerous weapons	C Misdemeanor	\$250.00/MA
102-74.445	Discrimination	C Misdemeanor	\$250.00/MA

**VIOLATIONS OF
18 U.S.C. 13 AND IDAHO CODE,
TITLE 49**

<u>Statute</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
18-8001	Driving Without Privileges	B Misdemeanor for first offence; A Misdemeanor for second offence	\$250.00/MA
49-213	Handicapped Parking Violation	Infraction	\$100.00
49-218	Operating Motor Vehicle as Emergency Vehicle	C Misdemeanor	\$75.00/MA
49-227	Driving Vehicle Without Owner=s Consent	Misdemeanor	\$100.00/MA
49-229	Injuring or Destroying Vehicle	Misdemeanor	\$250.00/MA
49-230	Tampering With Vehicle	Misdemeanor	\$250.00/MA

49-301	Fail to Purchase Driver's License/Invalid D.L./No motorcycle endorsement	Misdemeanor for drivers license; infraction for motorcycle endorsement	\$100.00/MA
49-316	Fail to Carry Driver's License(Dismissed w/proof)	No charge if license produced in court	\$50.00/MA
49-317	Violating a Restricted License	Infraction	\$50.00/MA
49-329	Operating Vehicle Under Out-of-State License While Suspended	Infraction	\$250.00/MA
49-331(1)	Displaying Mutilated or Fictitious License	Misdemeanor	\$100.00/MA
49-331(2)	Lending or Permitting Use of License by Another	Misdemeanor	\$100.00/MA
49-331(3)	Displaying a License of Another as One's Own	Misdemeanor	\$100.00/MA
49-333	Permitting Unauthorized Person to Drive	Infraction	\$50.00
49-427	Fail to Carry Registration in Vehicle (Dismissed w/Proof)	Infraction	\$50.00
49-428	Fail to Properly Display License Plates	Infraction	\$50.00
49-456(1)	Operate Motor Vehicle Not Registered	Infraction	\$250.00/MA
49-456(2)	Fictitious Display of Plates	Infraction	\$100.00/MA
49-456(3)	Lending or Permitting Another to Use Registration Or License Plates	Infraction	\$100.00/MA
49-602	Leave Motor Vehicle Unattended	Infraction	\$50.00
49-603	Unsafe Start of Parked Vehicle	Infraction	\$75.00
49-604	Improper Backing	Infraction	\$75.00
49-605	Driving on Sidewalk	Infraction	\$75.00
49-612	Obstructing Driver's View	Infraction	\$75.00
49-627	Crossing Fire Hose	Infraction	\$75.00
49-660	Stop, Stand, Park -- Prohibited in Specific Places	Infraction	\$50.00
49-661	Parking Violations	Infraction	\$25.00
49-666	No Helmet on Motorcycle - Under 18	Infraction	\$50.00

49-672	No Child Seat	Infraction	\$50.00
49-673	No Safety Restraint	Infraction	\$25.00
49-702	Fail to Yield to Pedestrian	Infraction	\$75.00
49-807	Stop Sign - Yield Sign Violations	Infraction	\$75.00
49-808	Signal -- Fail to Signal Violations	Infraction	\$75.00
49-923	Fail to Dim Lights	Infraction	\$75.00
49-943	Obstruction of Windshield	Infraction	\$75.00
49-944	Window Tinting Film Violations	Infraction	\$50.00
49-1229	Fail to Maintain Liability Insurance	Infraction	\$250.00/MA
49-1232	Fail to Provide Proof of Liability Insurance	Infraction	\$50.00
49-1301	Fail to Remain at Accident Scene	Misdemeanor	\$500.00/MA
49-1303	Fail to Notify Upon Striking Vehicle	Misdemeanor	\$500.00/MA
49-1304	Fail to Give Notice to Owner of Property Adjacent to Highways at Accident	Misdemeanor	\$250.00/MA
49-1305	Fail to Give Immediate Notice of Accident	Misdemeanor	\$500.00/MA
49-1308	Filing False Accident Report	Misdemeanor	\$250.00/MA
49-1401(1)	Reckless Driving	Misdemeanor	\$250.00/MA
49-1401(3)	Inattentive Driving	Misdemeanor	\$150.00/MA
49-1403	Knowingly Permit Operation of Vehicle Contrary to Law	Misdemeanor	\$50.00
49-1404	Fleeing or Attempting to Elude a Police Officer	Misdemeanor	\$500.00/MA
49-1428	Operate Motor Vehicle Without Insurance	Infraction	\$250.00/MA
49-1429	Altered Certificate Liability Insurance	Misdemeanor	\$250.00/MA
49-1430	Forged Liability Insurance Certificate	Misdemeanor	\$250.00/MA

Misdemeanor = Statute does not specify class or maximum term of imprisonment

IX
DEPARTMENT OF ENERGY
TITLE 10, CODE OF FEDERAL REGULATIONS
Prohibited Acts

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
860.3	Unauthorized entry upon any facility, installation or real property enclosed by a fence, wall, floor, roof, or other structural barrier	A Misdemeanor	\$150.00/MA

X

DEPARTMENT OF INTERIOR, INDIAN LANDS VIOLATIONS
TITLE 16, 18, & 21, UNITED STATES CODE VIOLATIONS

OFFENCES BY AN INDIAN OR NON-INDIAN

<u>Statute</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
18 U.S.C. § 641	Embezzlement, stealing or knowing conversion of U.S. money/property – under \$1,000.00	A Misdemeanor	\$250.00/MA *If the offense involved restitution, then citation should be MA
18 U.S.C. § 1163	Embezzlement, conversion or theft from Indian tribal organization – under \$1,000.00	A Misdemeanor	\$250.00/MA *If the offense involved restitution, then citation should be MA
18 U.S.C. § 1164	Destroying boundary signs and warning signs	B Misdemeanor	\$250.00/MA *If the offense involved restitution, then citation should be MA
18 U.S.C. § 1165	Hunting, trapping or fishing on Indian lands	B Misdemeanor	\$250.00/MA *If the offense involved restitution, then citation should be MA

21 U.S.C. § 844	Knowing or intentional possession of a controlled substance without a valid prescription – first offense	A Misdemeanor	\$250.00/MA
18 U.S.C. § 1361	Willful injury to U.S. government property with less than \$1,000.00 in damage	A Misdemeanor	\$250.00/MA *If the offense involved restitution, then citation should be MA
18 U.S.C. § 1853	Unlawful cutting, injuring or destroying trees on tribal land or Indian allotment	A Misdemeanor	\$175.00/MA *If the offense involved restitution, then citation should be MA
18 U.S.C. § 1856	Fires left unattended and unextinguished	B Misdemeanor	\$175.00/MA
18 U.S.C. § 1167(a)	Theft from a tribal gaming establishment on Indian land of less than \$1,000	A Misdemeanor	\$250.00/MA *If the offense involved restitution, then citation should be MA
18 U.S.C. § 470ee(a)	Unauthorized excavation, removal, damage, alteration, or defacement of any archeological resource located on public land, tribal land or Indian allotment without a permit (item with a value less than \$500) – first offenses	A Misdemeanor	\$300.00/MA *If the offense involved restitution, then citation should be MA

18 U.S.C. § 470ee(b)	Trafficking in archeological resources by selling, purchasing or offering for sale, purchase or exchange any archeological resource when it was excavated or removed from public land, tribal land or Indian allotment without legal authorization or in violation of federal law, regulation, rule ordinance or permit (item with a value less than \$500) – first offense	A Misdemeanor	\$300.00/MA *If the offense involved restitution, then citation should be MA
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OFFENCES BY A NON-INDIAN AGAINST THE PERSON OR PROPERTY OF AN INDIAN or OFFENSES BY AN INDIAN AGAINST THE PERSON OF PROPERTY OF A NON-INDIAN WITHIN INDIAN COUNTRY

<u>Statute</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
18 U.S.C. § 1152 & 113(a)(5)	Simple Assault	B Misdemeanor	\$300.00/MA *If the offense involved restitution, then citation should be MA *If the offense is a domestic assault, then citation should be MA
18 U.S.C. § 1152 & 113(a)(5)	Simple Assault against victim less than 16 yrs old	A Misdemeanor	MA
18 U.S.C. § 1152 & 113(a)(4)	Assault by striking, beating or wounding	B Misdemeanor	\$300.00/MA *If the offense involved restitution, then citation should be MA *If the offense is a domestic assault, then citation should be MA

<u>Statute</u>	Offense	Classification	Bail
18 U.S.C. § 1152 & 661	Taking and carrying away, with intent to steal or purloin, the personal property of another not taken from the person of another- under \$1,000	A Misdemeanor	\$250.00/MA *If the offense involved restitution, then citation should be MA
18 U.S.C. § 1152 & 662	Buying, concealing or receiving stolen personal property of another- under \$1,000	A Misdemeanor	\$250.00/MA *If the offense involved restitution, then citation should be MA
18 U.S.C. § 1152 & 13; I.C. § 18-7008	Willful trespass on individual's property by: Cutting down, destroying or injuring timber/wood; Carrying away wood/timber; Entering real property without owner's permission when property is properly posted with "no trespassing" signs Except under landlord-tenant relationship, whoever being first notified in writing or verbally by the owner or authorized agent of the owner of real property, to immediately depart from the same and who refuses to so depart, or who, without permission or invitation, returns and enters said property within a year, after being so notified.	B Misdemeanor	\$250.00/MA *If the offense involved restitution, then citation should be MA
18 U.S.C. § 1152 & 13; I.C. § 18-7011	Criminal trespass without owner's consent where property is so marked	B Misdemeanor	\$250.00/MA *If the offense involved restitution, then citation should be MA

18 U.S.C. § 1152 & 13; I.C. § 49-227	Joyriding – damage to, or property taken from, vehicle under \$1,000	B Misdemeanor	\$250.00/MA *If the offense involved restitution, then citation should be MA
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XI

BUREAU OF RECLAMATION

VIOLATIONS OF UNITED STATES CODE AND

TITLE 43, CODE OF FEDERAL REGULATIONS

Restricted or Prohibited Acts

UNITED STATES CODE VIOLATIONS

<u>Statute</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
16 USC 433	Antiquities Act	B Misdemeanor	\$500.00/MA
16 USC 670j(a)(1)	Hunting without Sykes Stamp	B Misdemeanor	\$100.00/MA
16 USC 670j(a)(2)	Violations of Habitat Management Plan Regulations	B Misdemeanor	\$100.00/MA
16 USC 1538(a)	Violate Endangered Species Act	B Misdemeanor	\$250.00/MA
16 USC 3372	Lacey Act B Plants	A Misdemeanor	\$250.00/MA
16 USC 3372	Lacey Act B Animals	A Misdemeanor	\$250.00/MA
16 USC 4306(a1)	Cave Resources - Destroy, Deface, Remove, etc	A Misdemeanor	\$150.00/MA
16 USC 4306(a1)	Cave Resources B Possess, Sell, Exchange, etc	A Misdemeanor	\$250.00/MA
18 USC 641	Theft of Government Property	A Misdemeanor	\$250.00/MA
18 USC 1361	Vandalism of Government Property	A Misdemeanor	\$250.00/MA
18 USC 1852	Timber Removed or Transported	A Misdemeanor	\$175.00/MA
18 USC 1853	Trees cut or injured	A Misdemeanor	\$175.00/MA
18 USC 1854	Trees Boxed for Pitch or Turpentine	A Misdemeanor	\$175.00/MA
18 USC 1856	Fire Left Unattended	B Misdemeanor	\$175.00/MA
18 USC 1857	Fence Destroyed B Livestock Entering	A Misdemeanor	\$250.00/MA
18 USC 1858	Survey Marks Destroyed or Removed	B Misdemeanor	\$250.00/MA
18 USC 1859	Interrupting Survey Crew	A Misdemeanor	\$250.00/MA
18 USC 1864(b)(5)	Hazardous Devices on Federal Lands	A Misdemeanor	\$500.00/MA

43 USC 1061	Unlawful Enclosure	Unspecified	\$250.00/MA
43 USC 1063	Obstruction of Transit over Public Lands	Unspecified	\$250.00/MA

43 CFR 423, Subpart C, VIOLATIONS

<u>Statute</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
423.22(a)	Threaten, resist, intimidate assault impede or interfere with Government Employee	B Misdemeanor	\$500.00/MA
423.22(b)	Violate lawful order	B Misdemeanor	\$250.00/MA
423.22(c)	False Report / False Information	B Misdemeanor	\$250.00/MA
423.22(d)	Interfering, impeding, disrupting authorized users	B Misdemeanor	\$150.00/MA
423.22(e)	Disorderly conduct	B Misdemeanor	\$150.00/MA
423.23(a)	Abandoned property	B Misdemeanor	\$250.00/MA
423.23(b)	Unattended property	B Misdemeanor	\$75.00/MA
423.24	Trespassing	B Misdemeanor	\$100.00/MA
423.25(a)	Tampering	B Misdemeanor	\$200.00/MA
423.25(b)	Vandalism/Theft	B Misdemeanor	\$250.00/MA
423.25(c)	Throwing item on/into facilities	B Misdemeanor	\$100.00/MA
423.26	Public meetings/ Assemblies	B Misdemeanor	\$100.00/MA
423.27	Advertising/soliciting	B Misdemeanor	\$200.00/MA
423.28	Memorials	B Misdemeanor	\$50.00/MA
423.29(a)	Damage or remove natural or cultural property	B Misdemeanor	\$250.00/MA
423.29(b)	Unauthorized introduction of wildlife fish plants or their parts	B Misdemeanor	\$250.00/MA
423.29(c)	Damage/disturb natural features (rocks or other items)	B Misdemeanor	\$150.00
423.29(d)	Damaging/removing live trees or parts	B Misdemeanor	\$150.00/MA
423.29(e)	Walking/climbing on cultural resources	B Misdemeanor	\$100.00/MA
423.29(f)	Unauthorized use of a metal detector	B Misdemeanor	\$50.00/MA

423.30(a)(1)	Possessing weapon at a facility	B Misdemeanor	\$250.00/MA
423.30(a)(2)	Weapons use not compliant with Special Use Area regulations	B Misdemeanor	\$100.00/MA
423.30(b)	Discharge of a weapon	B Misdemeanor	\$250.00/MA
423.30(c)	Explosives, fireworks or pyrotechnics	B Misdemeanor	\$250.00/MA explosives \$100.00/MA pyro and fireworks
423.31(a)	Unattended fire	B Misdemeanor	\$175.00/MA
423.31(b)	Improper disposal of burning material	B Misdemeanor	\$175.00/MA
423.31(c)	Burning toxic materials	B Misdemeanor	\$250.00/MA
423.31(d)	Improper transportation of fuel	B Misdemeanor	\$100.00/MA
423.31(e)	Noncompliance with applicable fire regulations	B Misdemeanor	\$100.00/MA
423.32(a)(1)	Hunting/fishing/trapping in a closed area	B Misdemeanor	\$100.00/MA
423.32(b)	Noncompliance w/ area restrictions (hunting/fishing trapping)	B Misdemeanor	\$100.00/MA
423.33(a)	Non-compliance with camping regulations in Special Use Area	B Misdemeanor	\$75.00/MA
423.33(b)	Exceeding 14 day limit	B Misdemeanor	\$100.00/MA
423.33(c)	Improper campsite reservation	B Misdemeanor	\$50.00/MA
423.33(d)	Leaving camping equipment	B Misdemeanor	\$75.00/MA
423.33(e)	Digging at campsite	B Misdemeanor	\$75.00/MA
423.34(a)	Improper disposal of refuse	B Misdemeanor	\$100.00/MA
423.34(b)	Littering campsite	B Misdemeanor	\$100.00/MA
423.34(c)	Improper latrine location	B Misdemeanor	\$50.00/MA
423.35(a)	Pets in public buildings, public vehicles or sanitary facilities	B Misdemeanor	\$50.00/MA
423.35(b)	Abandoning/harassing/endangering or unauthorized collecting animals	B Misdemeanor	\$100.00/MA
423.35(d)(1)	Prohibited wild or exotic animal	B Misdemeanor	\$150.00/MA

423.35(d)(2)	Prohibited vicious threatening pet/animal	B Misdemeanor	\$150.00/MA
423.36(a)(1)	Swimming/diving/rafting/jumping: within 300 yards of dam works	B Misdemeanor	\$50.00/MA
423.36(a)(2)	Swimming/diving/rafting/jumping: within 100 yards of buoys/barriers	B Misdemeanor	\$50.00/MA
423.36(a)(3)	Swimming/diving/rafting/jumping: In canals laterals siphons tunnels	B Misdemeanor	\$50.00/MA
423.36(a)(4)	Swimming/diving/rafting/jumping: At public docks launch sites and designated mooring areas	B Misdemeanor	\$50.00/MA
423.36(b)	SCUBA: Fail to display diving flag	B Misdemeanor	\$50.00/MA
423.36(c)	Jumping diving swinging from dams spillways bridges cables towers or other structures	B Misdemeanor	\$50.00/MA
423.37(a)	Winter activities: Improper towing	B Misdemeanor	\$75.00/MA
423.37(b)	Ice-skating, ice-fishing or ice-sailing: within 300 yards of dams power plants spillways gates etc.	B Misdemeanor	\$75.00/MA
423.38(a)	Vessel/Watercraft Operation: Non-compliance with State and Federal regulations	B Misdemeanor	\$100.00/MA
423.38(b)	Operate vessel in Closed Area	B Misdemeanor	\$100.00/MA
423.38(c)	Failure to observe sings buoys or other regulatory markers	B Misdemeanor	\$100.00/MA
423.38(d)	Reckless negligent or unsafe operation of vessel	B Misdemeanor	\$150.00/MA negligent \$250/MA reckless
423.38(e)	Operate vessel impaired/intoxicated	B Misdemeanor	\$300.00/MA
423.38(f)	Unauthorized overnight occupancy in a vessel	B Misdemeanor	\$50.00/MA
423.38(g)	Use of vessel as a residence	B Misdemeanor	\$100.00/MA
423.38(h)	Unauthorized use of vessel for fee or profit	B Misdemeanor	\$250.00/MA
423.38(i)	Vessel unattended for 24 hrs	B Misdemeanor	\$100.00/MA
423.38(j)	Improper vessel anchoring/attachment	B Misdemeanor	\$100.00/MA
423.38(k)	Vessel not displaying diving flag (while involved with diving operations)	B Misdemeanor	\$100.00/MA

423.38(l)	Waterskiing/towing between sunset and sunrise	B Misdemeanor	\$100.00/MA
423.39(a)(1)	Vessel not in compliance with 46 USC or applicable state/local regulations	B Misdemeanor	\$100.00/MA
423.39(a)(2)	Vessel not possessing proper safety equipment (PFD=s etc.)	B Misdemeanor	\$100.00/MA
423.39(a)(3)	Motorized vessel without proper exhaust muffler	B Misdemeanor	\$50.00/MA
423.40(a)	Vehicles-State traffic law applicable:	B Misdemeanor	\$100.00/MA
423.40(a)	Operating vehicle through/around a restrictive sign fence or barricade.	B Misdemeanor	\$100.00/MA
423.40(b)	Parking violations	B Misdemeanor	\$50.00
423.40(c)	Careless Driving	B Misdemeanor	\$150.00/MA
423.40(d)	Off-road Vehicle Regulations (43 CFR 420)	B Misdemeanor	\$100.00/MA
423.41(a)	Aircraft B unauthorized landing or take-off	B Misdemeanor	\$300.00/MA
423.41(b)	Aircraft B careless negligent or reckless operation	B Misdemeanor	\$200.00/MA Careless \$400.00/ MA reckless
423.41(d)	Aircraft B using non-standard boarding/loading procedures	B Misdemeanor	\$100.00/MA
423.41(f)	Seaplanes B USCG rules applicable	B Misdemeanor	\$100.00/MA
423.41(g)	Seaplanes B Improper mooring	B Misdemeanor	\$100.00/MA
423.41(h)	Seaplanes - Commercial operation	B Misdemeanor	\$500.00/MA
423.41(i)	Seaplanes- Operating between sunset and sunrise	B Misdemeanor	\$100.00/MA
423.41(j)	Seaplanes- Noncompliance with other official restrictions	B Misdemeanor	\$100.00/MA
423.41(k)	Model Aircraft B Unauthorized operation	B Misdemeanor	\$50.00/MA
423.42	Gambling	B Misdemeanor	\$100.00/MA
423.43	Alcohol violations	B Misdemeanor	\$100.00
423.44	Controlled substances	B Misdemeanor	\$250/MA

XII

NATIONAL MARINE FISHERIES SERVICE
VIOLATIONS OF UNITED STATES CODE AND
TITLE 50, CODE OF FEDERAL REGULATIONS
Restricted or Prohibited Acts

Marine Mammal Protection Act
(16 USC §§ 1372, 1375)

50 CFR § 216: Taking and Importing of Marine Mammals

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
216.11	Take of any marine mammal in the wild - hunt, capture, collect, or kill, or attempt to hunt, capture, collect, or kill		\$1,000/MA + Value
216.12	Import marine mammal		\$1,000/MA + Value
216.13	Port use, transport, purchase, sale of any marine mammal or marine mammal product		\$1,000/MA + Value
216.16	Provide false information in a letter of intent for research		\$500/MA
216.17	Assault, resist, oppose, impede, intimidate, threaten, or interfere with officer		\$1,000/MA

Endangered Species Act
(16 USC §§ 1538, 1540)

16 USC §1538: Prohibited Acts- Endangered Marine and Anadromous Species

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
1538(a)(1)(A-G)	Take, import, export, deliver or transport of any endangered fish or wildlife		\$1,000/MA + Value

North Pacific Halibut Act
(16 USC § 773)

50 CFR § 223: Prohibitions - Threatened Marine and Anadromous Species

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
223.202(a)	Take, import, export, deliver or transport - Steller sea lion		\$1,000/MA +

			Value
223.203(a)	Take, import, export, deliver or transport of any threatened anadromous fish species		\$500/MA + Value

16 USC § 773e: Prohibited Acts

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
773e(a)(3)	Forcibly assault, resist, oppose, impede, intimidate, or interfere with any enforcement officer in the conduct of any search or inspection described in paragraph (2)		\$1,000/MA
773e(a)(4)	Resist a lawful arrest or detention for any act prohibited by this section		\$750/MA
773e(a)(6)	Interfere with, delay or prevent, the apprehension, arrest or detention of another person, knowing that such person has committed any act prohibited by this section		\$750/MA

Lacey Act Amendments of 1981 (16 USC §§ 3372-3373)

16 USC § 3372: Prohibited Acts

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Bail</u>
3372(a)(1)	Import, export, transport, sell, receive, acquire, or purchase any fish or wildlife taken, possessed, transported, or sold in violation of any law, treaty, or regulation of the U.S. or in violation of any Indian tribal law		\$250 (Fish) \$250 (Shellfish) \$250 (Sea turtle) \$250 (Other) \$500 (Mammal) +value for above
3372(a)(2)(A)	Import, export, transport, sell, receive, acquire, or purchase in interstate or foreign commerce: (A) any fish or wildlife taken, possessed, transported, or sold in violation of any law or regulation of any State or		\$250 (Fish) \$250 (Shellfish)

	in violation of any foreign law		\$250 (Sea turtle) \$250 (Other) \$500 (Mammal) +value for above
3372(a)(3)(A)	Within the special maritime and territorial jurisdiction of the U.S. (as defined in section 7 of title 18): (A) to possess any fish or wildlife taken, possessed, transported, or sold in violation of any law or regulation of any State or any foreign law or Indian tribal law		\$250 (Fish) \$250 (Shellfish) \$250 (Sea turtle) \$250 (Other) \$500 (Mammal) +value for above
3372(a)(4)	Attempt to commit any act described in paragraphs (1) through (3)		\$250 (Fish) \$250 (Shellfish) \$250 (Sea turtle) \$250 (Other) \$500 (Mammal) +value for above
3372(c)(1)(A), (B)	It is deemed to be a sale of fish or wildlife in violation of this chapter for a person for money or other consideration to offer or provide: (A) guiding, outfitting, or other services; or (B) a hunting or fishing license or permit; for the illegal taking, acquiring, receiving, transporting, or possessing of fish or wildlife		\$1,000/MA + Value

3372(c)(2)(A), (B)	It is deemed to be a purchase of fish or wildlife in violation of this chapter for a person to obtain for money or other consideration: (A) guiding, outfitting, or other services; or (B) a hunting or fishing license or permit; for the illegal taking, acquiring, receiving, transporting, or possessing of fish or wildlife		\$1,000/MA + Value
3372(d), (1), (2)	For any person to make or submit any false record, account, or label for, or any false identification of, any fish or wildlife, which has been, or is intended to be: (1) imported, exported, transported, sold, purchased, or received from any foreign country; or (2) transported in interstate or foreign commerce		\$250 (Fish) \$250 (Shellfish) \$250 (Sea turtle) \$250 (Other) \$500 (Mammal) +value for above

XIII
UNIFORM COLLATERAL FORFEITURE
SCHEDULE FOR MISDEMEANOR OFFENSES COMMITTED WITHIN THE PURVIEW OF THE
 ACOUSTIC RESEARCH DETACHMENT, BAYVIEW IDAHO
 VIOLATIONS OF UNITED STATES CODE
 Restricted or Prohibited Acts
 (18 USC §§ 641,1382,111)

<u>Section</u>	<u>Offense</u>	<u>Classification</u>	<u>Cash payments in lieu of appearance</u>
§641	Theft of Government Property		\$500
§1382	Trespassing		\$150
§111	Theft of Government Property		\$500

NOTE: Due to the increased liability and potential severity for environmental degradation posed by commercial and organized activities, collateral amounts for violations listed herein shall be doubled for corporation, businesses, partnerships, hunt clubs, and other organizations, committing such violations (18 USC § 3571(c) - fines for Organizations).

Value = The current established replacement value of fish and wildlife items listed in Appendix A (that were taken or otherwise related to the violation committed).

Item = Per specimen, part, or product

APPENDIX A

FISH/WILDLIFE/OTHER VALUATION TABLE (NMFS jurisdiction)

For purposes of this valuation table, certain terms used are defined as follows:

Whole/Trophy: The entire carcass of an animal, or any part thereof (including meat that is reduced to possession by anyone, or transferred to another).

Whole/Skin: The entire carcass of an animal, or any portion of the hide or pelt that is retained by anyone, or transferred to another.

Whole/Mount: The entire carcass of an animal, or any entire or partial reproduction of the animal that is composed in whole or in part of any wildlife parts.

Parts/Products Any parts of any species of animal, or any items whatsoever that are composed partially or entirely from any animal.

Declared Value: Any value assigned to any fish, wildlife, or parts thereof, or any other item listed in this table, declared on U.S. Customs and/or U.S. Fish and Wildlife Service declaration forms.

(Note: The declared value shall be used to assign value in any instances where it is greater than the amount listed in this valuation table).

<u>Category</u>	<u>Species</u>	<u>Description</u>	<u>Value</u>
Endangered or Threatened fish or wildlife	All	Whole/Trophy Parts	\$5,000 \$2,500
Other Animals	All whole products	Per Item	\$50 or declared value
Marine Mammals	All (non-ESA listed species)	Whole/Trophy Parts/Products	\$2,000 \$500 per items or declared value
Games/Sport Fish	Salmon, tuna, halibut rockfish, etc.	Whole/Trophy	\$50
Other Fish	Sturgeon, etc. Eggs/Roe All other	Whole/Trophy Per Ounce Per container Whole/Trophy Parts/products	\$1,000 \$500 \$500 or declared value \$100 + \$25 per item
Mollusks	All whole/products	Per item	\$25 or declared value
Corals	All whole/products	Per item	\$100 or declared value

APPENDIX B

FISH AND WILDLIFE PROPERTY FORFEITURE ORDER

Unless otherwise specifically ordered by a United States Court, any fish, wildlife, or property, which has been seized under authority of the following statutes:

Endangered Species Act,

16 USC §§ 1531- 1544; Marine

Mammal Protection Act, 16

USC §§ 1371-1389;

Lacey Act Amendments of 1981, 16 USC §§ 3371-3378;

where final disposition of the case has been made, by either payment of a forfeiture of collateral or a judgment by the Court, on behalf of the government and where so authorized by statute, such fish and wildlife or property shall be forfeited to the U.S. Government. The property will be disposed of by the National Marine Fisheries Service in the manner proscribed by Title 15, Code of Federal Regulations, Part 904.